



CHAPTER xliii.

An Act to authorise the Corporation of Accrington to
construct and work tramways to execute street works
and improvements and to make further provision for the
improvement local government and health of the Borough
of Accrington and for other purposes.

A.D. 1905.

[30th June 1905.]

WHEREAS the borough of Accrington in the county palatine of Lancaster (in this Act called "the borough") is a municipal borough under the government of the mayor aldermen and burgesses thereof (in this Act called "the Corporation") and whereas the Corporation acting by the council are the local authority for the borough :

And whereas under the powers conferred by the Accrington Corporation Tramways Act 1882 the Corporation have constructed in the borough the tramways in the said Act described :

And whereas the Corporation by indenture dated the fifth day of April one thousand eight hundred and eighty-six leased the said tramways to the Accrington Corporation Steam Tramways Company Limited which company was dissolved and re-incorporated by the Accrington Corporation Steam Tramways (Haslingden and Rawtenstall Extension) Act 1887 and the company so re-incorporated is in this Act called "the tramway company" and the said company are now working and using the said tramways by steam power :

And whereas the term granted to the tramway company by the said indenture will expire on the twelfth day of April one thousand nine hundred and seven and it is expedient that the Corporation be authorised to reconstruct portions of the existing tramways to construct additional tramways both within

A.D. 1905. — and beyond the borough and to equip both the existing and the additional tramways for the purpose of working by electrical power and to work the same :

And whereas it is expedient that the Corporation be authorised to construct the street works by this Act authorised :

And whereas a certain institution has been established in the borough known as the Accrington Mechanics Institution and the said institution and the lands buildings and property held in connexion therewith are vested in trustees who hold the same on the trusts declared in an indenture bearing date the twenty-fifth day of June one thousand eight hundred and eighty-three :

And whereas it is expedient that the Corporation should be empowered to acquire a portion of the lands buildings and property vested in the said trustees for the purposes of a public library and the agreement bearing date the twenty-seventh day of October one thousand nine hundred and four made between the said trustees of the one part and the Corporation of the other part contained in the First Schedule to this Act should be confirmed :

And whereas the Corporation have been empowered by the Accrington Electric Lighting Order 1890 to supply electrical energy throughout the borough and further powers are necessary in connexion with that undertaking :

And whereas it is expedient that better provision should be made with reference to streets buildings sewers and drains and parks and recreation grounds within the borough and further provision made for the local government health and improvement of the borough :

And whereas it is expedient that an insurance fund should be established for the purpose of insuring the works buildings furniture effects and property of the Corporation against loss or damage by fire :

And whereas it is expedient that the Corporation should be empowered to borrow money as in this Act mentioned and that better provision should be made in regard to the loans of the Corporation the securities upon which they are charged the discharge of borrowed money and other financial matters :

And whereas it is expedient that the other powers contained in this Act should be conferred upon the Corporation :

And whereas the purposes aforesaid cannot be effected without the authority of Parliament: A.D. 1905.

And whereas estimates have been prepared by the Corporation for the purchase of land for and the execution of the various works by this Act authorised and such estimates are as follow :—

For the construction of the tramways by this Act authorised the reconstruction of the existing tramways and for tramway purposes seventy-seven thousand pounds;

For the electrical equipment of the Corporation tramways forty thousand five hundred pounds;

For the lands by this Act authorised to be purchased five thousand pounds;

For the purchasing of motors and apparatus in connexion with the electrical undertaking five thousand pounds;

For the conversion of the existing closet accommodation in the borough into closet accommodation on the water carriage system seven thousand pounds:

And whereas the several works included in such estimates respectively are permanent works and it is expedient that the cost thereof be spread over a term of years:

And whereas an absolute majority of the whole number of the council at a meeting held on the ninth day of November one thousand nine hundred and four after ten clear days notice by public advertisement of such meeting and of the purpose thereof in the *Accrington Observer and Times* a local newspaper published and circulating in the borough (such notice being in addition to the ordinary notices required for summoning such meeting) resolved that the expense in relation to promoting the Bill for this Act should be charged on the borough fund and borough rate and the district fund and general district rate:

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the ninth day of January one thousand nine hundred and five being not less than fourteen days after the deposit of the Bill in Parliament:

A.D. 1905. — And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule of the Borough Funds Act 1903 have been observed :

And whereas plans and sections showing the lines and levels of the works by this Act authorised and also plans showing the lands authorised by this Act to be purchased compulsorily appropriated taken and used together with a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken appropriated and used for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county palatine of Lancaster and are in this Act respectively referred to as the deposited plans sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title. **1.** This Act may be cited as the Accrington Corporation Act 1905.

Interpretation. **2.** In this Act unless the subject or context otherwise requires—

Terms to which meanings are assigned by enactments incorporated with this Act or by the Public Health Acts or which have therein special meanings have in this Act and for the purposes of this Act (except where otherwise expressly provided) the same respective meanings ;

“ The borough ” means the borough of Accrington ;

“ The Corporation ” means the mayor aldermen and burgesses of the borough ;

“ The town clerk ” means the town clerk of the borough ;

“ The treasurer ” means the treasurer of the borough ;

“ The medical officer ” “ the surveyor ” and “ the inspector of nuisances ” respectively mean the medical officer of health the borough surveyor and any inspector of

nuisances appointed by the council in pursuance of the powers of this or any public Act and "medical officer" includes any person duly authorised to act temporarily as medical officer of health ;

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—

"The borough fund" and "the borough rate" respectively mean the borough fund and the borough rate of the borough ;

"The district fund" and "the general district rate" respectively mean the district fund and the general district rate of the borough ;

"The tramways" means the tramways by this Act authorised to be reconstructed and constructed ;

"The tramway undertaking" means the tramway undertaking of the Corporation for the time being authorised ;

"The Corporation tramways" includes the tramways and any tramways for the time being belonging or demised to or worked by the Corporation ;

"Tramway revenue" means all revenue of the tramway undertaking ;

"The tramway company" means the Accrington Corporation Steam Tramways Company ;

"Mechanical power" includes steam electrical and every other motive power not being animal power ;

"Engine" includes motor ;

"The electrical undertaking" means the electrical undertaking of the Corporation for the time being authorised ;

"The Municipal Corporations Acts" means the Municipal Corporations Act 1882 and any Act or Acts amending the same ;

"The Public Health Acts" means the Public Health Act 1875 and any Act or Acts amending the same ;

"The Act of 1882" means the Accrington Corporation Tramways Act 1882 ;

"Infectious disease" means any infectious disease to which for the time being the Infectious Disease (Notification) Act 1889 applies within the borough ;

"Closet accommodation" means any receptacle for human excreta and the fittings and apparatus connected therewith ;

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“Waste watercloset” means closet accommodation on the water carriage system flushed with slops or waste liquids of the household or rain-water;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government Department made or given or to be made or given by authority of any Act of Parliament passed or to be passed.

Act divided
into Parts.

3. This Act is divided into Parts as follows (that is to say):—

- Part I.—Preliminary.
- Part II.—Tramways.
- Part III.—Street Works.
- Part IV.—Public Library.
- Part V.—Lands.
- Part VI.—Electricity.
- Part VII.—Streets and Buildings.
- Part VIII.—Sanitary.
- Part IX.—Infectious Disease.
- Part X.—Common Lodging-Houses.

- Part XI.—Public Buildings Recreation Grounds. A.D. 1905.
 Part XII.—Police.
 Part XIII.—Finance.
 Part XIV.—Fire Insurance Fund.
 Part XV.—Miscellaneous.

4. The Lands Clauses Acts (except section 127 of the Incorporation of Acts. Lands Clauses Consolidation Act 1845) and section 3 (Interpretation of terms) and Parts II. and III. of the Tramways Act 1870 so far as the same are applicable for the purposes of and not varied by or inconsistent with this Act are incorporated with and form part of this Act :

Provided that notwithstanding anything in the Tramways Act 1870 the Corporation may from time to time lease the Corporation tramways (as herein-after defined) or any part thereof for such period exceeding twenty-one years as the Board of Trade may sanction.

PART II.

TRAMWAYS.

5. Subject to the provisions of this Act the Corporation may reconstruct form lay down continue work use and maintain the tramways herein-after described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections namely :— Power to reconstruct certain existing tramways.

The following tramways authorised by and constructed under the powers contained in the Act of 1882 :—

So much of Tramway No. 1 (wholly double line 1 mile 1 furlong 6 chains in length) as extends from a point in Manchester Road within the borough opposite to the southerly entrance gates of Oak Hill Park passing thence in a northerly direction along Manchester Road Abbey Street and Whalley Road to a point in that road at the intersection of Lime Street with such road This tramway will be situate within the borough :

So much of Tramway No. 6 (wholly double line 1 furlong 3 chains in length) as extends from a point in Blackburn Road within the borough at the intersection of Church Street with that road passing thence in a westerly direction

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along Blackburn Road to a point in such road opposite the westerly side of the intersection of Edgar Street with Blackburn Road This tramway will be situate within the borough :

So much of Tramway No. 7 (wholly double line 2·7 chains in length) as extends from a point in Blackburn Road within the parish and urban district of Church 1·5 chains west of the intersection of Henry Street with such road passing thence in a westerly direction along Blackburn Road to a point in that road on the easterly side of the intersection of Market Street with that road This tramway will be situate within the parish and urban district of Church.

Power to
make tram-
ways.

6. Subject to the provisions of this Act the Corporation may make form lay down work use and maintain both within and outside the borough the tramways herein-after described in the lines and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates works and conveniences connected therewith :

Provided that nothing in this Act shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 and 1888 to which the provisions of section 15 of the former Act apply except in accordance with and subject to the provisions of that section.

The tramways herein-before referred to and authorised by this Act are—

Tramway No. 1 (1 mile 3 furlongs 3·4 chains in length whereof 1 mile and 3·1 chains will be single line and 3 furlongs 0·3 chain will be double line) commencing in Whalley Road within the borough by a junction with Tramway No. 1 authorised by the Act of 1882 at a point in Whalley Road on the easterly side of the intersection of Burnley Road with Whalley Road passing thence in a north-easterly direction along Burnley Road to the north-easterly boundary of the borough and thence along the same road into and through the parish of Huncoat and terminating at a point in the centre of such road about thirty yards from the southerly corner of the Griffin Head Inn This tramway will be situate partly within the borough and partly in the parish of Huncoat :

Tramway No. 2 (1 mile and 1·8 chains in length whereof 4 furlongs 1·5 chains will be single line and 4 furlongs 0·3 chain will be double line) commencing in Blackburn Road in the parish and urban district of Church by a junction with the said Tramway No. 7 at a point on the easterly side of the intersection of that road with Market Street Church passing thence in a southerly direction along Market Street through the parish and urban district of Church and thence along the same road there called Union Road into and through the parish and urban district of Oswaldtwistle and terminating at a point in the centre of such road 0·3 chain east of the intersection of New Lane with that road This tramway will be situate partly in the parish and urban district of Church and partly in the parish and urban district of Oswaldtwistle :

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Provided that notwithstanding anything contained in this Act or shown upon the deposited plans Tramway No. 2 shall between points 1 furlong and 1 furlong 4 chains respectively from its commencement as shown on the deposited plans be constructed in such position as the Lancashire and Yorkshire Railway Company may reasonably require so however that a space of not less than 9 feet 6 inches shall intervene between the limit of the carriageway and the nearest rail of the tramway upon whichever side of the road shall have been selected by the said company.

7.—(1) The tramways shall be constructed on a gauge of four feet or such other gauge as may from time to time be approved by the Board of Trade but carriages or trucks adapted to run on railways shall not be run thereon.

Gauge of tramways.

(2) In the event of the tramways being constructed on a less gauge than four feet eight and a half inches so much of section 34 of the Tramways Act 1870 as limits the extent of the carriage used on any tramway beyond the edge of the wheels of such carriage shall not apply to carriages used on the tramways but no carriage or engine shall exceed six feet six and a half inches in width or such other width as may from time to time be prescribed by the Board of Trade.

8. If the tramways be not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Corporation for reconstructing and constructing the same or otherwise in relation thereto shall

Period for completion of tramways.

A.D. 1905. — cease except as to so much of the tramways respectively as is then completed.

Tramways to form part of tramway undertaking.

9. The tramways shall for all purposes form part of the tramway undertaking.

Power to remove existing tramways and utilise materials.

10. In reconstructing the tramways or any of them to be reconstructed under the powers of this Act the Corporation may take up and remove the existing tramways so to be reconstructed or any of them and may discontinue and suspend the traffic thereon for such period as may be necessary for reconstructing the tramways or any of them and may sell dispose of or utilise in such reconstruction all or any of the materials now forming the existing tramways so to be reconstructed or any of them.

Plan of proposed mode of construction.

11. In addition to the requirements of section 26 of the Tramways Act 1870 the Corporation shall in respect of so much of the tramways as are situate outside the borough at the same time as they give notice to the road authority of their intention to open or break up any road for the purpose of laying down constructing and renewing any of the tramways and in respect of so much of the tramways as are situate within the borough before commencing the construction laying down and renewal of any of such tramways or of any part thereof lay before the Board of Trade a plan showing the proposed mode of constructing laying down and renewing such tramways and a statement of the materials intended to be used therein and the Corporation shall not commence the construction laying down and renewal of any of the tramways or part of any of the tramways respectively until such plan and statement have been approved by the Board of Trade and after such approval the works shall be executed in accordance in all respects with such plan and statement and under the superintendence and to the reasonable satisfaction of the surveyor of the road authority as provided by section 26 of the said Act.

Penalty for not maintaining rails and roads.

12.—(1) The Corporation shall at all times maintain and keep in good condition and repair and so as not to be a danger or annoyance to the ordinary traffic the rails of the Corporation tramways and the substructure upon which the same rest and if the Corporation at any time fail to comply with this provision or with the provisions of section 28 of the Tramways Act 1870 they shall be subject to a penalty not exceeding five pounds and to a daily penalty not exceeding five pounds.

(2) In case it is represented in writing to the Board of Trade by the road authority of any district in which the Corporation tramways or any portion thereof are or is situate or by twenty inhabitant ratepayers of such district that the Corporation have made default in complying with the provisions in this section contained or with any of the requirements of section 28 of the Tramways Act 1870 the Board of Trade may if they think fit direct an inspection by an officer to be appointed by the said Board and if such officer report that the default mentioned in such representation has been proved to his satisfaction then and in every such case a copy of such report certified by a secretary or an assistant secretary of the Board of Trade may be adduced as evidence of such default and of the liability of the Corporation to such penalty or penalties in respect thereof as is or are by this section imposed.

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Board of
Trade may
on complaint
inspect tram-
ways.

13. Where in any road in which a double line of tramway is laid there shall be less width between the outside of the footpath on either side of the road and the nearest rail of the tramway than nine feet six inches the Corporation shall if and where required by the Board of Trade construct a cross-over or cross-overs connecting the one tramway with the other and by the means of such cross-over or cross-overs the traffic shall when necessary be diverted from one tramway to the other.

Cross-overs
to be con-
structed in
certain cases

14.—(1) The Corporation may subject to the provisions of this Act with the consent of the Board of Trade make maintain alter and remove such cross-overs passing places sidings junctions and other works in addition to those particularly specified in and authorised by this Act as they find necessary or convenient for the efficient working of the Corporation tramways or for providing access to any generating stations warehouses stables or carriage houses or works of the Corporation.

Power to
make addi-
tional cross-
overs and to
double tram-
way lines.

(2) Notwithstanding anything shown on the deposited plans the Corporation may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the Corporation tramways and if at any time the road in which any tramway or part thereof is authorised to be laid or is laid has been or shall be altered or widened the Corporation may with the like consent construct such tramway or part thereof or (as the case may be) take up or reconstruct the same in such position as they may think fit.

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(3) Provided that if in the construction of any works under this section any rail is intended to be so laid that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Corporation shall not less than one month before commencing the works give notice in writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not (except with the consent of the Board of Trade) be so laid if the owners or occupiers of one third of such houses shops or warehouses by writing under their hands addressed and delivered to the Corporation within three weeks after receiving the notice from the Corporation express their objection thereto.

Corporation may reduce footpath for constructing tramways.

15. The Corporation may with the consent of the local and road authority increase the roadway of any street or road in which any of the tramways are authorised to be laid to such extent as may be necessary to leave a space of nine feet and six inches between the outside of the footpath on each and either side of such street or road and the nearest rail of such tramway by reducing the width of the footpath on each or either side of such street or road Provided that no footpath be so reduced in width as to be less than six feet wide.

Shelters or waiting rooms.

16. The Corporation may erect and maintain in any district sheds or shelters or waiting rooms for the accommodation of passengers and of the Corporation servants and the Corporation may with the consent of the local and road authority of such district for such period and on such terms as may be agreed upon use for that purpose portions of the public streets or roads within such district.

Stopping of roads during execution of works.

17. Subject to the provisions of this Act the Corporation may during the execution of the tramways and street works with the consent of the road authority expressed in writing by the clerk of such authority stop up temporarily the carriageway or footway of any road or bridge as they think necessary and for that purpose may put up bars posts and other erections and prevent all persons other than those bonâ fide going to or returning from any house in the street from passing along and using the same for any reasonable time but convenient access to the houses in such street shall be provided by the Corporation Provided that at all times during the execution of the tramways and street works a proper and efficient access to every passenger or goods

station of the Lancashire and Yorkshire Railway Company shall be maintained both for vehicular and pedestrian traffic. A.D. 1905.

18. The Corporation may cut and lop any trees planted in or near any highway along the route of the Corporation tramways which may in any way interfere with the construction or working of the tramways or trolley wires in connexion therewith or with the clear and safe passage of the tramcars and the passengers thereon. Provided that the Corporation shall not in the exercise of the powers of this section do unnecessary damage to any such trees and shall make compensation to any persons who may sustain damage by the exercise of the powers conferred by this section. Corporation may lop trees overhanging public highway.

19. The Corporation may lay and maintain pipes and make openings or ways in or under and may break up the surface of any road or street (including the footways thereof) footpath bridge or public place in order to lay and maintain and may lay use and maintain cables ropes conduits electric conductors wires and other apparatus for transmitting motive power for the carriages running on the Corporation tramways and the Corporation may use electric wires and all machinery and apparatus necessary for such motive power. Power to lay and maintain pipes and make openings in streets.

20. Subject to the provisions of this Act the Corporation may place and maintain on in under or over any road or street (including the footways thereof) footpath bridge or public place in which the Corporation tramways or any of them are or is laid such posts standards brackets and overhead and other electric conductors mains and conduits as they may consider necessary and proper for working the same by mechanical power and may remove replace or alter the position of any lamp-post in any such road street footway footpath bridge or place. Provided that the position of such posts standards and brackets so far as they may be placed outside the borough shall be subject to the reasonable consent of the road authority. Power to place posts wires &c.

21. The Corporation may with the consent of the owner of any building attach to that building such brackets wires and apparatus as may be required for the working of the Corporation tramways by mechanical power. Provided that— Attachment of brackets to buildings.

- (1) Where in the opinion of the Corporation any consent under this section is unreasonably refused they may appeal to a petty sessional court who shall have power having regard to the character of the building

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and to the other circumstances of the case to allow the attachment subject to such terms as to compensation or rent and otherwise as they may think reasonable or to disallow the same and may determine by which of the parties the costs of the appeal are to be paid :

(2) Any consent of an owner and any order of a petty sessional court under this section shall not have effect after that owner ceases to be in possession of the building but any attachments fixed under the provisions of this section shall not be removed until the expiration of three months after any subsequent owner shall have given to the Corporation notice in writing requiring the attachments to be removed Where such notice is given the preceding provisions of this section shall apply and the petty sessional court shall have the same powers as under proviso (1) :

(3) The owner may require the Corporation to temporarily remove the attachments where necessary during any reconstruction or repair of the building.

For the purpose of this section any occupier of a building whose tenancy exceeds one year unexpired and in the case of any other tenancy the person receiving the rack rent shall be deemed to be the owner.

Apparatus
used for
mechanical
power to be
deemed part
of tramways.

22. The provisions of sections 26 to 33 and 41 of the Tramways Act 1870 (except so much of section 28 as relates to the repair of the road between and on each side of the rails of a tramway) shall apply as if all posts tubes pipes wires and other apparatus used or to be used by the Corporation for the purposes of mechanical power were parts of the Corporation tramways And section 30 shall have effect as if wires or apparatus laid in a road included wires or apparatus erected or carried over a road or footpath.

Power to ac-
quire patent
rights.

23. For the purposes of the tramway undertaking and the electrical undertaking or either of them the Corporation may acquire hold and exercise patent and other rights or licences but not so as to acquire any exclusive right therein.

Junctions
with tram-
ways which
can be

24. The Corporation may make junctions between their tramways and any other tramway or light railway laid near their tramways and which can be worked in connexion therewith but

only with the consents of the owners and lessees of such tramway or light railway and (where such junctions are laid upon any road) of the road authority within whose district such junctions are intended to be laid and the provisions of the Tramways Act 1870 incorporated with this Act and of this Act with respect to the construction maintenance and working of the tramways shall apply to such junctions where laid along any road and such junctions when made shall for all purposes be deemed to be part of the tramway undertaking.

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worked in
connexion
with Corpo-
ration tram-
ways.

25. If the Corporation at any time find it necessary or desirable to remove snow or other matter impeding the traffic on the Corporation tramways the Corporation may at their own cost remove the snow or other matter to the side of the road but so as not to impede or obstruct the ordinary traffic on the road and salt shall not be used for thawing the snow on any road Provided that any dirt or other like matter removed by the Corporation from the grooves of the rails of the tramways shall not be allowed to remain on the side of the road but shall be taken away by the Corporation as soon as shall be reasonably practicable.

As to re-
moval of
snow &c.

26. The carriages used on the Corporation tramways may be moved by animal power or subject to the following provisions by mechanical power (that is to say):—

Provisions
as to motive
power.

- (1) The mechanical power shall not be used except with the consent of and according to a system approved by the Board of Trade :
- (2) The Board of Trade shall make regulations (in this Act referred to as "the Board of Trade regulations") for securing to the public all reasonable protection against danger arising from the use under this Act of mechanical power on the Corporation tramways and for regulating the use of electrical power :
- (3) The Corporation or any company or person using any mechanical power on the Corporation tramways contrary to the provisions of this Act or of the Board of Trade regulations shall for every such offence be liable to a penalty not exceeding ten pounds and also in the case of a continuing offence to a further penalty not exceeding five pounds for every day during which such offence is continued after conviction thereof :

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(4) The Board of Trade if they are of opinion—

(A) That the Corporation or such company or person have or has made default in complying with the provisions of this Act or of the Board of Trade regulations whether a penalty in respect of such non-compliance has or has not been recovered ; or

(B) That the use of mechanical power as authorised under this Act is a danger to the passengers or the public ;

may by order either direct the Corporation or such company or person to cease to use such mechanical power or permit the same to be continued only subject to such conditions as the Board of Trade may impose and the Corporation or such company or person shall comply with every such order. In every such case the Board of Trade shall make a special report to Parliament notifying the making of such order.

Special provisions as to use of electrical power.

27. The following provisions shall apply to the use of electrical power under this Act unless such power is entirely contained in and carried along with the carriages :—

(1) The Corporation shall employ either insulated returns or uninsulated metallic returns of low resistance :

(2) The Corporation shall take all reasonable precautions in constructing placing and maintaining their electric lines and circuits and other works of all descriptions and also in working their undertaking so as not injuriously to affect by fusion or electrolytic action any gas or water pipes or other metallic pipes structures or substances or to interfere with the working of any wire line or apparatus from time to time used for the purpose of transmitting electrical power or of telegraphic telephonic or electric signalling communication or the currents in such wire line or apparatus :

(3) The electrical power shall be used only in accordance with the Board of Trade regulations and in such regulations provision shall be made for preventing fusion or injurious electrolytic action of or on gas or water pipes or other metallic pipes structures or substances and for minimising as far as is reasonably practicable injurious interference with the electric

wires lines and apparatus of other parties and the currents therein whether such lines do or do not use the earth as a return : A.D. 1905.

- (4) The Corporation shall be deemed to take all reasonable precautions against interference with the working of any wire line or apparatus if and so long as they adopt and employ at the option of the Corporation either such insulated returns or such uninsulated metallic returns of low resistance and such other means of preventing injurious interference with the electric wires lines and apparatus of other parties and the currents therein as may be prescribed by the Board of Trade regulations and in prescribing such means the Board shall have regard to the expense involved and to the effect thereof upon the commercial prospects of the undertaking :
- (5) At the expiration of two years from the commencement of this Act the provisions of this section shall not operate to give any right of action in respect of injurious interference with any electric wire line or apparatus or the currents therein unless in the construction erection maintaining and working of such wire line and apparatus all reasonable precautions including the use of an insulated return have been taken to prevent injurious interference therewith and with the currents therein by or from other electric currents :
- (6) If any difference arises between the Corporation and any other party with respect to anything herein-before in this section contained such difference shall unless the parties otherwise agree be determined by the Board of Trade or at the option of the Board by an arbitrator to be appointed by the Board and the costs of such determination shall be in the discretion of the Board or of the arbitrator as the case may be :
- (7) The expression "Corporation" in this section shall include lessees licencees and any person owning working or running carriages over any tramway of the Corporation.

28. Notwithstanding anything in this Act contained if any of the works authorised to be executed by this Act involves or is likely to involve any alteration of any telegraphic line belonging

Alteration
of telegraph
lines of
Postmaster-
General.

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For protection of Post Office telegraph lines.

29. In the event of any tramways of the Corporation being worked by electricity the following provisions shall have effect :—

(1) The Corporation shall construct their electric lines and other works of all descriptions and shall work their undertaking in all respects with due regard to the telegraphic lines from time to time used or intended to be used by His Majesty's Postmaster-General and the currents in such telegraphic lines and shall use every reasonable means in the construction of their electric lines and other works of all descriptions and the working of their undertaking to prevent injurious affection whether by induction or otherwise to such telegraphic lines or the currents therein Any difference which arises between the Postmaster-General and the Corporation as to compliance with this subsection shall be determined by arbitration :

(2) If any telegraphic line of the Postmaster-General is injuriously affected by the construction by the Corporation of their electric lines and works or by the working of the undertaking of the Corporation the Corporation shall pay the expense of all such alterations in the telegraphic lines of the Postmaster-General as may be necessary to remedy such injurious affection :

(3) Before any electric line is laid down or any act or work for working the tramways by electricity is done within ten yards of any part of a telegraphic line of the Postmaster-General (other than repairs) the Corporation or their agents not more than twenty-eight nor less than fourteen days before commencing the work shall give written notice to the Postmaster-General specifying the course of the line and the nature of the work including the gauge of any wire and the Corporation and their agents shall conform with such reasonable requirements (either general or special) as may from time to time be made by the Postmaster-General for the purpose of preventing any telegraphic line of the Postmaster-General from being injuriously

affected by the said act or work Any difference A.D. 1905,
which arises between the Postmaster-General and the
Corporation as to any requirement so made shall be
determined by arbitration :

- (4) If any telegraphic line of the Postmaster-General situate within one mile of any portion of the works of the Corporation is injuriously affected and he is of opinion that such injurious affection is or may be due to the construction of the works of the Corporation or to the working of the undertaking the engineer-in-chief of the Post Office or any person appointed in writing by him may at all times when electrical energy is being generated by the Corporation enter any of the works of the Corporation for the purpose of inspecting the Corporation plant and the working of the same and the Corporation shall in the presence of such engineer-in-chief or such appointed person as afore-said make any electrical tests required by the Postmaster-General and shall produce for the inspection of the Postmaster-General the records kept by the Corporation pursuant to the Board of Trade regulations :
- (5) In the event of any contravention of or wilful non-compliance with this section by the Corporation or their agents the Corporation shall be liable to a fine not exceeding ten pounds for every day during which such contravention or non-compliance continues or if the telegraphic communication is wilfully interrupted not exceeding fifty pounds for every day on which such interruption continues :
- (6) Provided that nothing in this section shall subject the Corporation or their agents to a fine under this section if they satisfy the Court having cognisance of the case that the immediate doing of any act or the execution of any work in respect of which the penalty is claimed was required to avoid an accident or otherwise was a work of emergency and that they forthwith served on the postmaster or sub-postmaster of the postal telegraph office nearest to the place where the act or work was done a notice of the execution thereof stating the reason for doing or executing the same without previous notice :

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- (7) For the purposes of this section a telegraphic line of the Postmaster-General shall be deemed to be injuriously affected by an act or work if telegraphic communication by means of such line is whether through induction or otherwise in any manner affected by such act or work or by any use made of such work :
- (8) For the purposes of this section and subject as therein provided sections 2 10 11 and 12 of the Telegraph Act 1878 shall be deemed to be incorporated with this Act :
- (9) The expression " electric line " has the same meaning in this section as in the Electric Lighting Act 1882 :
- (10) Any question or difference arising under this section which is directed to be determined by arbitration shall be determined by an arbitrator appointed by the Board of Trade on the application of either party whose decision shall be final and sections 30 to 32 both inclusive of the Regulation of Railways Act 1868 shall apply in like manner as if the Corporation or their agents were a company within the meaning of that Act :
- (11) Nothing in this section contained shall be held to deprive the Postmaster-General of any existing right to proceed against the Corporation by indictment action or otherwise in relation to any of the matters aforesaid :
- (12) In this section the expression " the Corporation " includes their lessees and any person owning working or running carriages on any of the tramways of the Corporation.

Conveyance
of mails.

30. Notwithstanding any provision in any Act relating to any of the existing tramways the Conveyance of Mails Act 1893 shall extend and apply to all the Corporation tramways as if the same had been authorised by an Act of Parliament passed after the first day of January one thousand eight hundred and ninety-three and to the Corporation as the body or person owning or working such tramways.

Power to
Corporation
to work
tramways.

31. Notwithstanding anything in the Tramways Act 1870 to the contrary the Corporation may place and run carriages on and may work and may demand and take tolls and charges

in respect of the Corporation tramways and in respect of the use of such carriages and may provide such stables buildings carriages trucks harness engines machinery apparatus horses steam cable electric and other plant appliances and conveniences as may be requisite or expedient for the working or user of the said tramways by animal or mechanical power but nothing in this section shall empower the Corporation to construct any station for generating electrical power nor to create or permit a nuisance.

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32. The power conferred on the Corporation by the Tramways Act 1870 to purchase tramways within the borough is hereby extended so as to authorise the Corporation by agreement to purchase or take upon lease any tramways or tramroads or light railways in the borough of Haslingden the urban districts of Church Oswaldtwistle or Clayton-le-Moors or the parishes of Huncoat or Altham in the rural district of Burnley or now belonging to the tramway company or any of them which form or are capable of forming continuations of the Corporation tramways and which can be worked in connexion therewith Provided that nothing in this Part of this Act contained shall prejudice or affect the powers of the local authorities for the respective districts or parishes in which such tramways may be situate under section 43 of the Tramways Act 1870 or any other Act or Order relating to those tramways or tramroads or light railways respectively.

Power to purchase tramways outside borough.

33. The Corporation may reconstruct or alter any of their existing tramways and may construct erect lay down place and maintain in over or under the surface of any street all such works as may be necessary or expedient for the purpose of adapting such tramways and the tramways by this Act authorised to the use of mechanical power and the Corporation may make and maintain openings in on or under the surface of any street or place.

Adaptation of tramways to mechanical power.

34. The Corporation may provide and run within the borough omnibuses moved by animal or mechanical power in connexion with the Corporation tramways when the running of cars on the tramways is impracticable or during the construction alteration or repair thereof and may demand and take tolls and fares for the use of such omnibuses :

Omnibuses in connexion with tramways.

Provided always that if the Corporation use electrical power for moving omnibuses they shall unless the electrical power is entirely contained in and carried along with the omnibuses only

A.D. 1905. — use the same subject to the provisions contained in the sections of this Act of which the marginal notes are "Provisions as to motive power" and "Special provisions as to use of electrical power" and provided further that such electrical power shall be so used as to prevent any interference with telegraphic communication by means of any telegraphs of the Postmaster-General.

Passengers' fares.

35. The Corporation may demand and take for every passenger travelling upon the Corporation tramways or any part or parts thereof including every expense incidental to such conveyance a fare not exceeding one penny per mile or per stage and in computing the said fare the fraction of a mile or a stage shall be deemed a mile or a stage but in no case shall the Corporation be bound to charge a less sum than one penny and for the purposes of this provision the Corporation may by resolution divide any of the Corporation tramways into stages of not less distance than one mile each.

Cheap fares for labouring classes.

36.—(1) The Corporation at all times after the opening of the Corporation tramways for public traffic shall and they are hereby required to run a proper and sufficient service of carriages for artisans mechanics and daily labourers each way] every morning and every evening (Sundays Christmas Day and Good Friday always excepted) at such hours not being later than eight in the morning or earlier (except on Saturdays) than five in the evening respectively as may be most convenient for such workmen going to and returning from their work at fares not exceeding one halfpenny for every mile or one penny per stage of not less than two miles and in computing such fare the fraction of a mile or a stage shall respectively be deemed to be a mile or a stage as the case may be and for the purposes of this provision the Corporation may by resolution divide any of the Corporation tramways into stages of not less distance than two miles each and commencing at points along the tramway so divided into stages between any two of which there shall not be a greater distance than one mile On Saturdays the Corporation in lieu of running such carriages after five o'clock in the evening shall run the same at such hours between noon and two o'clock in the afternoon as may be most convenient for the said purposes.

(2) If complaint is made to the Board of Trade that such a proper and sufficient service is not provided the Board after considering the circumstances of the locality may by order direct

the Corporation to provide such service as may appear to the Board to be reasonable. A.D. 1905.

(3) The Corporation shall be liable to a penalty not exceeding five pounds for every day during which they fail to comply with any order under this section.

37. The Corporation shall not take or demand on Sunday or on any public holiday any higher fares or charges than those levied by them on ordinary week days. As to fares on Sundays and holi-days.

38. The existing tramways of the Corporation and the tramways by this Act authorised to be constructed may be used for the carriage of passengers animals goods minerals articles and things but the Corporation shall not be bound unless they think fit to carry any animals goods minerals articles or things other than personal luggage as aforesaid and not exceeding twenty-eight pounds in weight. Carriage of goods.

39. The Corporation may demand and take in respect of any animals goods minerals parcels articles or things conveyed by them on the Corporation tramways including every expense incidental to such conveyance (except a reasonable sum for loading or unloading and for delivery and collection of goods minerals parcels and other things and any other service incidental to the business of a carrier where any such service is performed by the Corporation) any rates or charges not exceeding the rates per mile following:— Rates for animals goods &c.

In respect of animals conveyed on the tramways—

For every horse mule or other beast of draught or burden fourpence ;

For every ox cow bull or head of cattle threepence ;

For every calf pig sheep or small animal one penny halfpenny :

In respect of goods conveyed on the tramways—

For all coal coke culm charcoal cannel limestone chalk lime salt sand fireclay cinders dung compost and all sorts of manure and all undressed materials for the repair of public roads or highways per ton twopence ;

For all iron ironstone iron ore pig iron bar iron rod iron sheet iron hoop iron plates of iron slabs billets and rolled iron bricks slag and stone stones for building pitching and paving tiles slates and clay (except fireclay) and for

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wrought iron not otherwise specially classed herein and for heavy iron castings including railway tramroad or tramway chairs pipes tubes and plates per ton twopence halfpenny ;

For all sugar grain corn flour hides dyewoods timber staves deals and metals (except iron) nails anvils vices and chains and for light iron castings per ton threepence ;

For cotton wools drugs manufactured goods earthenware and all other wares merchandise fish vegetables and all other articles matters or things not otherwise specially classed herein per ton fourpence ;

For every carriage of whatever description one shilling.

Rates for
small parcels
and single
articles of
great weight.

40. With respect to small parcels and single articles of great weight notwithstanding anything in this Act the Corporation may demand and take any rates and charges not exceeding the rates per mile following (that is to say) :—

For any parcel not exceeding seven pounds in weight threepence ;

For any parcel exceeding seven pounds and not exceeding fourteen pounds in weight fivepence ;

For any parcel exceeding fourteen pounds and not exceeding twenty-eight pounds in weight sevenpence ;

For any parcel exceeding twenty-eight pounds and not exceeding fifty-six pounds in weight ninepence ;

For any parcel exceeding fifty-six pounds and not exceeding five hundred pounds in weight such sum as the Corporation may think fit :

Provided that no parcel under fifty-six pounds in weight exceed four feet in length or measure more than twelve cubic feet. Provided also that articles sent in large aggregate quantities although made up in separate parcels (such as bags of sugar coffee meal and the like) shall not be deemed small parcels but that term shall apply only to single parcels in separate packages :

For the carriage of any boiler cylinder or single piece of machinery or single piece of timber or stone or other single article the weight of which including the carriage exceeds four tons but does not exceed eight tons such sum as the Corporation may think fit not exceeding two shillings per ton per mile ;

For the carriage of any single piece of timber stone or machinery or other single article the weight of which including the carriage exceeds eight tons such sum as the Corporation may think fit. A.D. 1905.

41. For animals goods minerals articles or things conveyed on the tramways for a less distance than two miles the Corporation may demand rates and charges as for two miles : Regulations as to rates on tramways.

A fraction of a mile beyond an integral number of miles shall be deemed a mile ;

For a fraction of a ton (except in the case of small parcels) the Corporation may demand tolls according to the number of quarters of a ton in such fraction and if there be a fraction of a quarter of a ton such fraction shall be deemed a quarter of a ton ;

With respect to all articles except stone and timber the weight shall be determined according to the imperial avoirdupois weight ;

With respect to stone and timber fourteen cubic feet of stone forty cubic feet of oak mahogany teak beech or ash and fifty cubic feet of any other timber shall be deemed one ton weight and so in proportion for any smaller quantity ;

With respect to bulky articles or goods the Corporation shall have the option of charging per ton measurement reckoning at the rate of fifty cubic feet to the ton.

42. The regulations authorised by the Tramways Act 1870 to be made by the promoters of any tramway and their lessees may with respect to any tramways or portions of tramways for the time being belonging to and worked by the Corporation be made by the Corporation alone. Regulations by Corporation.

43. The provisions of the Tramways Act 1870 relating to the making of byelaws by the local authority with respect to the rate of speed to be observed in travelling on the tramways shall not authorise the local authority to make any byelaws sanctioning a higher rate of speed than that authorised by the Board of Trade regulations but the byelaws of the local authority may restrict the rate of speed to a lower rate than that so authorised. Byelaws by local authority. •

44. If any person wilfully does or causes to be done with respect to any apparatus used for or in connexion with the Penalty for malicious damage.

A.D. 1905. — working of any tramway of the Corporation anything which is calculated to obstruct or interfere with the working of such tramway or to cause injury to any person he shall (without prejudice to any proceedings by way of indictment or otherwise to which he may be subject) be guilty of an offence punishable on summary conviction and every person convicted of such offence or of any offence under section 50 of the Tramways Act 1870 with respect to any tramway of the Corporation shall be liable to a penalty not exceeding twenty pounds.

Agreements
for working
running
powers &c.

45.—(1) Subject to the provisions of this Act and with the approval of the Board of Trade the Corporation may enter into and carry into effect contracts and arrangements with the mayor aldermen and burgesses of the borough of Haslingden the urban district councils of Church Oswaldtwistle or Clayton-le-Moors or the local authorities for the respective parishes of Huncoat or Altham in the rural district of Burnley or any one or more of them or with the tramway company or their successors with respect to the running over working use management and maintenance by the contracting parties of all or any of their respective tramways or light railways and works connected therewith or any part or parts thereof respectively the making of all necessary junctions the supply under any agreement for all or any of the respective tramways or light railways of the contracting parties being worked and used by the other of them as aforesaid of rolling stock plant machinery and electrical energy or power necessary for the purposes and during the continuance of such agreement the appointment and removal of officers and servants the payments to be made and the conditions to be performed in respect of such working use management and maintenance the interchange accommodation conveyance transmission and delivery of traffic coming from or destined for the respective undertakings of the contracting parties and the division and apportionment of the revenue arising from such traffic and the payment of any moneys by way of fixed or contingent rent or in a lump sum or otherwise.

(2) The Corporation and every local authority and company working or using any tramway or light railway under the powers of this section shall be subject to all the regulations and restrictions so far as the same are applicable to which the working and user of such tramway or light railway by or in the hands of the promoters of the same is subjected by the Act or Order authorising the construction thereof or by any byelaw or regulation made under such Act or Order.

(3) No contract or agreement under this section shall extend for a period beyond seven years from the making thereof. On the termination of any such agreement a new contract or agreement with or without modifications for such limited period as aforesaid may with the approval of the Board of Trade be entered into between the parties and so on from time to time as occasion may arise. A.D. 1905.

(4) Any difference or dispute as to the construction of or in any way arising out of any such contract or agreement shall be referred to arbitration and section 33 of the Tramways Act 1870 shall apply to any such arbitration.

(5) Nothing in this section shall authorise any local authority to construct or work tramways outside their own respective districts or to supply electrical energy or power beyond their own respective areas of supply.

46. In the event of the urban district council of Church exercising the powers of purchase contained in section 65 (For protection of the local board of health for the district of Church) of the Act of 1882 in respect of the tramways constructed by the Corporation within their district under that Act or the powers of purchase contained in the Tramways Act 1870 as to the tramways constructed by the Corporation within their district under this Act the provisions of the said section 65 subsection (j) shall as from the passing of this Act be read and have effect so as to authorise the Corporation as well as any licensee of the Corporation to run carriages with flanged wheels upon and over the rails of any tramway within the district of the said urban district council having a physical connexion with any tramway belonging to the Corporation or over which the Corporation shall have the right to run carriages and the provisions of the said subsection as to the exercise of the powers thereby conferred by the licensees of the Corporation shall apply to the Corporation. Extending section 65 of Act of 1882 as to purchase by urban district council of Church of tramways within their district.

47.—(1) The Corporation shall apply all money received by them on account of revenue in respect of the tramway undertaking in manner and in the order following (that is to say):— Application of tramway revenue.

First In payment of the working and establishment expenses and cost of maintenance of the tramway undertaking (including the maintenance of so much of the roads in which the tramways are laid as is required to

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be maintained and kept in good repair and condition by the promoters of tramways by section 28 of the Tramways Act 1870):

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of the tramway undertaking:

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed for the purposes of the tramway undertaking:

Fourthly In extending and improving (if the Corporation think fit) any works for the purposes of the tramway undertaking:

Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one fifth of the aggregate capital expenditure for the time being by the Corporation upon the tramway undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the tramway undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the tramway undertaking or for payment of the cost of renewing any part of the tramways of the Corporation or of the works connected therewith and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum:

And the Corporation shall carry to the borough fund so much of any balance remaining in any year of the income of the tramway undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the tramway undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the tramway undertaking shall be forthwith made good out of the borough fund : A.D. 1905.

Provided that as regards so much of any deficiency in the revenue of the tramway undertaking paid or required to be paid by the Corporation out of the borough fund as may arise in respect of Corporation tramways outside the borough the Corporation shall and they are hereby required to allow or repay to the occupiers of any land used as a railway constructed under the powers of any Act of Parliament for public conveyance a sum equivalent to three-fourths of so much of the deficiency as shall arise as aforesaid as the said occupiers respectively shall be liable to pay or shall have paid by reason and in respect of their assessment to the borough rate and in order to give effect to this proviso the Corporation shall keep separate accounts of receipts and expenditure in connexion with such of the Corporation tramways as are outside the borough and such accounts shall at all reasonable times be open to the inspection of the railway company occupying any such land and their officers.

48. The following sections of the Act of 1882 (that is to say) :— Incorporation of sections of Act of 1882.

- Section 7 (Inspection by the Board of Trade);
- Section 10 (Byelaws);
- Section 13 (Orders and byelaws);
- Section 15 (As to rails of tramways);
- Section 17 (Tramways to be kept on level of surface of road);
- Section 19 (Sewer authorities to have access to sewers);
- Section 21 (Substituted tramways may be made where necessary);
- Section 22 (Application of road materials excavated within borough);
- Section 23 (Application of road materials excavated elsewhere);
- Section 24 (Traffic upon tramways);
- Section 25 (Corporation may use tramways for sanitary purposes);
- Section 29 (Periodical revision of tolls);
- Section 32 (Passengers luggage);
- Section 38 (Provisions as to carriage of goods &c.); and
- Section 67 (Provision as to general Acts);

A.D. 1905, shall as extended by this Act so far as the same are applicable in that behalf and are not varied by or are inconsistent with the provisions of this Act be incorporated with and extend and apply mutatis mutandis to and in relation to the Corporation tramways.

Repeal of
sections of
Act of 1882.

49. The following sections of the Act of 1882 (that is to say) :—

- Section 8 (Carriages may be moved by animal or steam power);
- Section 9 (Penalty for using steam or mechanical power contrary to Act or regulations);
- Section 11 (As to recovery of penalties);
- Section 12 (Amendment of 33 & 34 Vict. c. 78 as to byelaws by local authorities);
- Section 14 (Penalty for not maintaining rails and road in good condition);
- Section 16 (Further provisions as to construction of tramways);
- Section 18 (Corporation may be required to use improved form of rails);
- Section 20 (Additional crossings &c. may be made where necessary);
- Section 26 (Tolls for passengers);
- Section 27 (Tolls for animals goods &c.);
- Section 28 (Regulations as to tolls);
- Section 30 (Tolls to be inclusive);
- Section 31 (As to use of steam or mechanical power by lessees);
- Section 33 (As to user of tramways and tolls thereon when left open to be used by the public);
- Section 34 (Tolls if tramways left open to be used by the public);
- Section 35 (Servants of Corporation to ride in carriages &c. free of charge);
- Section 36 (Certain provisions of 33 & 34 Vict. c. 78 as to licencees extended to persons using the tramways when left open to be used by the public);

Section 37 (Lessees not to be bound to carry goods &c. A.D. 1905.
unless as provided herein);

Section 39 (As to payment of tolls);

Section 40 (Cheap fares for labouring classes);

Section 41 (Form and delivery of notices);

Section 42 (Notice to road authorities before steam or
mechanical power is used);

Section 43 (As to contracts with road authority where
steam or mechanical power is to be used);

Section 44 (Where steam or mechanical power is used
contract with road authority not to be for
longer than two years at a time);

Section 45 (Carriages or horses unfit for use may be
removed);

Section 55 (Application of tramway revenue);

Section 61 (Power to Corporation to sell portions of
tramways beyond the borough);

Section 62 (Provisions as to arbitration 17 & 18 Vict.
c. 125);

Section 63 (For the protection of the Lancashire and
Yorkshire Railway Company);

Section 64 (For the protection of the Clayton-le-Moors
Local Board &c.); and

Section 66 (As to alteration of gauge);

shall so far as the same relate to the Corporation tramways be
and the same are hereby repealed.

50. For the protection and benefit of the urban district council of Oswaldtwistle in the county of Lancaster (in this section called "the council") the following provisions shall (unless otherwise agreed in writing between the council and the Corporation) apply and have effect (that is to say):—

For protec-
tion of Os-
waldtwistle
Urban Dis-
trict Council.

- (1) Before commencing to lay down Tramway No. 2 in the district of the council (in this section called "the district") the Corporation shall at their own expense widen Union Road within the limits of deviation and to the improvement line as shown on the deposited plans:

A.D. 1905.

- (2) The Corporation shall at their own expense in laying Tramway No. 2 between Foxhill Bank Brow and York Street pave the roadway between the rails and eighteen inches on the outside of the rails with sound granite setts of a size and description and in manner to be reasonably approved by the surveyor to the council for the time being (in this section referred to as "the surveyor") and where the said tramway is laid as a double line the Corporation shall at the like expense in addition pave the portion of the roadway between the double line of tramway with like setts excepting in front of the town hall for a distance of fifty yards and also excepting in front of St. Paul's School for the distance now paved with wood where such portions of the roadway shall be laid with hard wood blocks of like quality and character to those now laid instead of stone setts:
- (3) The paving on each side of the tramway shall be properly toothed in with broken joints with the existing pavements to the reasonable satisfaction of the surveyor:
- (4) All grit sett paving taken up for the purpose of being replaced with new granite sett paving or wood paving shall remain the property of the council:
- (5) The Corporation shall before opening Tramway No. 2 for traffic pay to the council the sum of two hundred and fifty pounds as the value of the concrete or other material other than the paving in Union Road and which may be re-used by the Corporation:
- (6) The Corporation shall erect all posts or standards rosettes or wall plates which are required for the purpose of carrying the overhead wires within the district in such positions and of such heights and of such design as shall be reasonably approved by the surveyor and wherever possible on the east side of Union Road and if in any case the surveyor considers that for the convenience or safety of the public or of the frontagers to any road rosettes or wall plates should be fixed in lieu of posts and standards the Corporation shall use their best endeavours to obtain the requisite permission to affix such rosettes or wall plates instead of posts and standards and a reasonable proportion of such posts shall be

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—

suitable for carrying electric or gas lamps for the proper lighting of the roads The Corporation shall at all times allow the council to use the said standards and posts for the electric or gas lighting of the roads free of charge provided that such user by the council shall not in any way hinder the efficient working of the said tramways by electric traction The Corporation shall deliver to the council a plan showing the position in which it is proposed to lay any underground cableways or cables and no work shall be commenced in connexion with the laying of any such cableways or cables until such plan has been approved by the surveyor in writing under his hand which approval shall not be unreasonably withheld and notice of his approval or disapproval shall be given within twenty-one days from the delivery of the plan and if not so given he shall be deemed to have approved the same :

- (7) The Corporation shall at all times after the opening of the said tramway or any portion thereof for public traffic provide such service of cars thereon as may be reasonably required in the public interest Any question which may arise as to the service of cars shall be settled and determined in manner provided by subsection (9) hereof and if the Corporation fail to provide such service as the Board of Trade shall so decide to be reasonably required they shall be liable to a penalty of not exceeding five pounds for every day on which such failure occurs :
- (8) The tramcars shall be stopped at a reasonable number of points in the district to be approved by the council and they shall not be unduly delayed at such points so as to cause any obstruction to the general traffic :
- (9) Any question dispute or difference which may arise between the council or their surveyor and the Corporation with reference to this section or anything to be done or not be done thereunder shall (unless otherwise agreed) be determined in case of difference by an engineer or other fit person to be appointed by the Board of Trade on the application of either party.

51. For the protection and benefit of the urban district council of Church in the county of Lancaster (in this section

For protection of
Church

A.D. 1905. called "the council") the following provisions shall (unless otherwise agreed in writing between the council and the Corporation) apply and have effect (that is to say):—

Urban
District
Council.

- (1) Before commencing to lay down Tramway No. 2 in the district of the council (in this section called "the district") the Corporation shall at their own expense widen Market Street within the limits of deviation and to the improvement line as shown on the deposited plans :
- (2) The Corporation shall at their own expense in laying Tramway No. 2 in the district pave the roadway between the rails and eighteen inches on the outside of the rails with sound granite setts of a size and description and in manner to be reasonably approved by the surveyor to the council for the time being (in this section referred to as "the surveyor") and where the said tramway is laid as a double line the Corporation shall at the like expense in addition pave the portion of the roadway between the double line of tramway with like setts :
- (3) The provisions of subsections (3) (4) (6) (7) (8) and (9) of the section of this Act whereof the marginal note is "For protection of Oswaldtwistle Urban District Council" shall apply and have effect for the benefit and protection of the council provided that in applying the provisions of the said subsection (6) the words "Market Street" shall be read in place of the words "Union Road" where used in that subsection.

For pro-
tection of
Clayton-le-
Moors Urban
District
Council.

52. For the protection and benefit of the urban district council of Clayton-le-Moors (in this section called "the council") the following provisions shall have effect (that is to say):—

- (1) Notwithstanding anything contained in this Act the Act of 1882 or in the Tramways Act 1870 the time at which the council shall be first entitled to exercise their power under section 43 of the Tramways Act 1870 to purchase such of the Corporation tramways as are within their district shall be within six months after the expiration of ten years from the twelfth day of April one thousand nine hundred and seven and within six months after the expiration of every subsequent period of seven years :

- (2) When the Corporation reconstruct and adapt to the use of mechanical power such of their tramways as are within the said urban district they shall subject to the provisions of this Act and with the consent of the Board of Trade make and lay down double lines from Mill Street in a north-westerly direction to the terminus of their tramways on the south side of the bridge carrying Whalley Road over the Leeds and Liverpool Canal in the said urban district. A.D. 1905.

53. Notwithstanding anything in this Act the provisions of this section shall apply for the protection of the council of the administrative county of the county palatine of Lancaster (herein-after called "the county council") and the ratepayers and inhabitants of the said administrative county unless otherwise agreed in writing between the county council and the Corporation (that is to say):—

For pro-
tection of
Lancashire
County
Council.

- (1)—(A) Before any tramway by this Act authorised to be laid along Burnley Road in the township of Huncoat within the said administrative county is opened for public traffic the Corporation shall at their own expense widen the main roads along which such tramway shall be laid to a uniform width of not less than twenty-seven feet of metalled carriageway in addition to the existing width of footpath:

(B) The Corporation shall at their own expense pave or metal the widened portion of the carriageway and footpath (if any) with the same class of pavement or metalling as exists in the main road before it is widened:

(c) A double line of rails shall not be laid where a single line is shown on the deposited plans without the written consent of the county council:

- (2) Where the Corporation lay a tramway other than as a reconstruction of any existing tramway as a single line along any main road they shall cause the same to be laid placed and maintained in such position as to allow a space of ten feet two and a half inches between the outer edge of the kerb and the centre of the nearest rail on one side and twelve feet nine and one half inches between the edge of the metalling or outer edge of the kerb as the case may be and the centre of the nearest rail on the other side so as to allow room

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for carts laden with hay and straw and other overhanging loads to pass freely on one side of such track except at crossing and passing places :

- (3) The Corporation shall at their own expense pave so much of any main road whereon any of the tramways are laid as lies between the rails and as extends one foot six inches beyond the rails of and on each side of any such tramway with granite cubes or setts or such other paving as the county council may reasonably approve and the Corporation shall so long as they shall work the said tramway keep and maintain the same in good repair and condition and all works and materials used in the construction maintenance or alteration of the said roads lying adjacent to the said tramway shall be reasonably approved by the county council.

For protection of Lancashire and Yorkshire Railway Company.

54. For the protection of the Lancashire and Yorkshire Railway Company (in this section called "the company") the following provisions shall unless otherwise agreed between the Corporation and the company be observed and have effect in relation to the construction reconstruction working use and maintenance of the Corporation tramways and the works connected therewith and of any works for the purpose of working the Corporation tramways by mechanical power where the same are intended to pass under any bridge of the company or in front of the entrances or approaches to any station of the company (that is to say) :--

- (1) In this section the word "apparatus" includes electric mains wires conductors posts tubes boxes apparatus , and any similar appliances used as or for the purposes of a motive power for the carriages running on the tramways and includes also any brackets wires and apparatus for the purposes of such apparatus :
- (2) All works where the same shall be made upon or under any bridge or other work belonging to or maintainable by the company or will otherwise affect the same shall be executed so as not to interfere with the structure of any such bridge or other work and according to plans sections and specifications to be previously submitted to and reasonably approved by the company or in case of difference between them and the Corporation by an arbitrator to be appointed as herein-after provided

Provided that if the company do not within twenty-one days after such submission signify their approval of such plans sections and specifications a difference shall be deemed to have arisen between them All such works shall be executed according to the plans sections and specifications so approved and under the superintendence and to the reasonable satisfaction of the company The Corporation shall so maintain and use the tramways and apparatus as not to injuriously affect any such bridge or other work and in the event of any injury being occasioned to such bridge or work by the construction reconstruction maintenance user or removal of the tramways and apparatus under the same the company may make good the injury and may recover from the Corporation the reasonable expenses of so doing:

- (3) The Corporation shall be responsible for and make good to the company all losses damages and expenses which may at any time be occasioned to the company or any of their works or property or to the traffic on their railways or to any company or person using the same by or by reason of the execution or failure of any of the works or apparatus or by or by reason of any act default or omission of the Corporation or of any person in their employ or of any contractors for the works or any part thereof and the Corporation shall effectually indemnify and hold harmless the company from all claims and demands upon or against them by reason of such execution or failure or of any such act default or omission:
- (4) If the company hereafter require to widen strengthen reconstruct alter or repair any such bridge under which the tramways are laid or to widen or alter any railway thereover and if the company shall find it necessary for such purpose that the working or user of any part of the tramways under such bridge be wholly or in part stopped or delayed or that such part of the tramway be temporarily taken up or diverted and if the company accordingly give to the Corporation fourteen days' notice in writing (or in case of emergency such notice as may be reasonably practicable) requiring such stoppage delay taking up or

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diversion then the working or user of such part of the tramways shall be stopped or delayed or such part of the tramway shall be taken up or diverted as stated in such notice at the reasonable expense of the Corporation and under their superintendence (if they shall give such superintendence) but no such working or user shall be stopped or delayed for a longer period than may be necessary for effecting such purpose as aforesaid and such part of the tramways shall be restored with all possible dispatch and in such case the company shall not be liable to pay compensation in respect of such stoppage delay or taking up or diversion :

- (5) The Corporation shall from time to time pay to the company any additional expense which the company may reasonably and properly incur in effecting such widening strengthening reconstructing altering or repairing as is mentioned in the last preceding subsection or in the maintenance of any bridge or other work of the company by reason of the existence or user of the tramways or any of the works or apparatus connected therewith :
- (6) If and when the company shall require to reconstruct alter repair or paint any bridge under which any electric wire of the Corporation has been placed the Corporation shall in order to ensure the safety of the workmen employed in such reconstruction alteration repairing or painting cut off the electric current from the trolley wires under such bridge at such time as shall be reasonably required by the engineer of the company unless the Corporation shall have previously adopted some other means of protection to workmen which shall have been approved by the said engineer :
- (7) If having regard to the proposed position of any works of the Corporation when considered in relation to the position of the works of the company at any point where the tramways will be constructed over or under the railway or other works of the company it becomes advisable in order to avoid danger from the breaking or falling of wires that the electric telegraphic telephonic or signal wires or apparatus of the company shall be altered the company may

execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be repaid to the company by the Corporation : A.D. 1905.
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- (8) Where any tramway will pass in front of the entrances to any passenger or goods stations or in front of the approach roads to any of the stations of the company no additional crossing or passing place siding junction turn-out or other work shall be made for or in connexion therewith for the distance thereon extending in front of the said entrances or approach roads to such stations and for a length of 10 yards at each end of such distance without the consent of the company and without such consent no carriage used on the tramways shall be stopped or permitted to be stopped within such distance and lengths except only for so long as shall be reasonably necessary for the purposes of discharging and taking up passengers :
- (9) The protection afforded to the company by this section shall not extend to the case of any interference with or effect upon any gas or water pipes or other metallic pipes structures or substances or any wires lines and apparatus of the company or the currents therein to which the section of this Act the marginal note of which is "Special provisions as to use of electrical power" applies but the company shall not by reason of being specially protected as regards other matters under this section lose as regards any such interference any protection to which they are otherwise entitled :
- (10) If any difference arises under this section between the Corporation and the company the same shall unless otherwise agreed be settled by an arbitrator to be appointed by the Board of Trade on the application of either party.

PART III.

STREET WORKS.

55. Subject to the provisions of this Act the Corporation in the lines and situation and upon the lands in that behalf delineated on the deposited plans and described in the deposited Power to
make street
works.

A.D. 1905. — book of reference in the urban districts of Church and Oswaldtwistle respectively may if they think fit make and maintain the following street works (that is to say):—

No. 1 A widening and improvement of Blackburn Road in the urban district of Church on the southerly side thereof for a distance of 9 yards or thereabouts measured in an easterly direction from the north-westerly corner of the Post Office :

No. 2 A widening and improvement of Market Street in the urban district of Church on the easterly side thereof for a distance of 9 yards or thereabouts measured in a southerly direction from the north-westerly corner of the Post Office :

No. 3 A widening and improvement of Union Road in the urban district of Oswaldtwistle on the westerly side thereof for a distance of $49\frac{1}{2}$ yards or thereabouts measured in a southerly direction from the north-easterly corner of the house and shop No. 16 Union Road.

Limits of lateral and vertical deviation for street works.

56. Subject to the provisions of this Part of this Act the Corporation in the construction of the street works by this Act authorised may deviate laterally from the lines thereof as shown on the deposited plans to the extent of the limits of lateral deviation shown thereon and they may deviate vertically from the limits shown on the deposited sections to any extent not exceeding two feet upwards or downwards.

Power to make subsidiary works.

57. Subject to the provisions of this Act and within the limits defined on the deposited plans the Corporation in connexion with the street works authorised by this Act and for the purposes thereof may make junctions and communications with any existing streets which may be intersected or interfered with by or be contiguous to the said street works and may make diversions widenings or alterations of lines or levels of any existing streets for the purpose of connecting the same with the said street works or of crossing under or over the same or otherwise and may alter divert stop up enclose use or appropriate all or any part of any street square place court alley or passage whether a thoroughfare or not or of any thoroughfare road lane or way or of any drain sewer or other property shown on the deposited plans the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer Provided that the provisions of section 308 of the

Public Health Act 1875 (Compensation in case of damage by local authority) shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act. A.D. 1905.
—

58. The Corporation within the limits of deviation defined upon the deposited plans may raise sink or otherwise alter or cause to be altered the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and also the drains mains and the leaden or other pipes or wires which for the purpose of conveying water electricity or gas to any house or other place shall be laid into or from any main cable or pipe laid down by the Corporation and may remove all other obstructions so as the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit and the provisions of section 308 of the Public Health Act 1875 shall apply as if the acts done under the authority of this section were done in exercise of the powers of that Act. Power to
alter steps
areas pipes
&c.

59. The sites of all houses and all lands purchased by the Corporation under the powers of this Part of this Act and under the section of this Act the marginal note of which is "For protection of Lancashire County Council" and laid into and appropriated for streets shall when and so soon as the same are so laid into and appropriated for streets be and for ever thereafter form part of the public streets and shall be repaired and maintained and kept in repair in such and the same way and manner as the streets in the said urban districts of Church and Oswaldtwistle and the township of Huncoat are for the time being by law maintained repaired and kept in order. Lands laid
into new
streets to be
public high-
ways.

PART IV.

PUBLIC LIBRARY.

60.—(1) The agreement set out in the First Schedule to this Act is hereby ratified confirmed and made binding on the parties thereto and shall be carried into effect according to the true intent and meaning thereof. Transfer of
part of
Mechanics
Institution
to Corpo-
ration for
public library
purposes.

(2) When the portion of the Accrington Mechanics Institution and the lands buildings and property in connexion therewith in the said agreement referred to have been transferred and conveyed to the Corporation in pursuance of the said agreement the site thereof shall vest in the Corporation as the library

A.D. 1905. authority for the purposes of the Public Libraries Acts 1892 to 1901 and the provisions of the said Acts shall apply to such site as though it were land acquired under or by virtue of those Acts and thereupon the Corporation may erect upon the said lands a new public library and may fit up and furnish the same with all necessary fittings and furniture and for ever thereafter maintain the same.

PART V.

LANDS.

Power to
take lands
referenced.

61. Subject to the provisions of this Act the Corporation may enter upon take and use all or any part of the lands delineated on the deposited plans and described in the deposited book of reference which they require for the tramways street works and other purposes by this Act authorised or (in the case of the widening or improving of any existing street) for the providing of space for the erection of buildings adjoining or near to any such street.

As to assess-
ing purchase
money.

62. In estimating the amount of compensation or purchase money to be paid by the Corporation under this Part of this Act the benefits accruing to the person to whom the same shall be paid by reason of the widening or improvement of any street or bridge shall be fairly estimated and shall be set off against the said compensation or purchase money.

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

63. Whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Corporation of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Corporation and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the Second Schedule to this Act and whereof a portion only is required for the purposes of the Corporation or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":

- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Corporation that he alleges such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Corporation such portion only without the Corporation being obliged or compellable to purchase the whole the Corporation paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Corporation allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled properties specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Corporation have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Corporation the portion which the tribunal shall have determined to be so severable without the Corporation being obliged or compellable to purchase the whole the Corporation paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material

A.D. 1905.

detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :

- (6) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Corporation may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the tribunal determine that the portion of the scheduled properties specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Corporation in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion of such costs charges and expenses as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

Period for compulsory purchase of lands.

64. The powers of the Corporation for the compulsory purchase of lands under this Act shall not be exercised after the expiration of five years from the passing of this Act.

Power to purchase additional

65. The Corporation in addition to any other lands which they are by this Act authorised to acquire may from time to

time by agreement purchase take on lease acquire and hold for tramway purposes any lands not exceeding in the whole ten acres Provided that the Corporation shall not create or permit the creation or continuance of any nuisance on any such lands or use such lands for any buildings except offices and dwellings for persons in their employment and such buildings and works as may be incident to or connected with their tramway undertaking.

A.D. 1905.
lands by
agreement.

66. The Corporation may appropriate and use with the approval of the Local Government Board and subject to such conditions as the Board may think fit to impose for any of the purposes of this Act or any previous Act or Order relating to the borough or for any of the purposes of the Public Health Acts or of the Municipal Corporations Acts any lands or property for the time being vested in them which are not wanted for the purpose for which such lands and property were originally acquired but nothing in this section shall authorise the Corporation to create or permit the creation or continuance of any nuisance on any such lands.

Power to
appropriate
lands.

If the Corporation so appropriate any lands they shall charge the account for which the said lands are appropriated with a reasonable sum by way of purchase money or rent for the said lands and shall carry that sum to the credit of the fund out of which the said lands were acquired.

67. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices (not being members of the Corporation) for the correction thereof and if it appear to the justices that the omission misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Lancaster and a duplicate thereof shall also be deposited with the town clerk and the clerks of the urban district councils of Church and Oswaldtwistle respectively and such certificate and duplicate respectively shall be kept by such clerk of the peace town clerk and clerks of

Correction
of errors &c.
in deposited
plans and
book of
reference.

A.D. 1905. — the said urban district councils respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

A copy of or an extract from such certificate purporting to be under the hand of the clerk of the peace aforesaid (which copy or extract shall be given when required under his hand to any person interested) shall be conclusive evidence of such correction.

Power to
retain sell
&c. lands.

68. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands or any interest therein acquired by them under this Act and the Accrington Order 1900 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 1) Act 1900 and may sell exchange or dispose of any rents reserved on the sale lease exchange or other disposition of such lands or interest therein and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

Proceeds of
sale of sur-
plus lands.

69. So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on resale or exchange or by leasing as aforesaid of lands acquired under this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied and any capital moneys received by them under the section of this Act the marginal note of which is "Power to Corporation to work tramways" the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment by this Act provided except

to such extent and upon such terms as may be approved by the Local Government Board Provided that— A.D. 1905.

- (1) The amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by this Act for the purpose of such purchase:
- (2) The borrowing powers conferred by this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

PART VI.

ELECTRICITY.

70. If the urban district councils of Church Oswaldtwistle or Clayton-le-Moors or the local authorities for the respective parishes of Huncoat or Altham in the rural district of Burnley or any one or more of them are or shall be authorised by Act of Parliament or by Provisional Order confirmed by Parliament to supply electrical energy or if any company are so authorised to supply electrical energy within any such urban districts or either of such parishes the Corporation and such local authority or company as the case may be may enter into and carry into effect agreements for the supply of electrical energy in bulk by the Corporation to such authority or company for use or distribution within those of the said urban districts or parishes as the case may be to which such Act or Order relates but not further or otherwise Provided that the Corporation shall not for the sole purpose of enabling them to exercise the powers of this section erect or provide any separate station for the generation of electrical energy Provided that such supply shall not be given if and so long as such supply would interfere with the supply of electrical energy within the borough.

Supply of electrical energy outside borough.

71. Notwithstanding anything contained in the Electric Lighting Acts 1882 and 1888 a person shall not be entitled to demand from the Corporation a supply of electrical energy to premises having a separate supply (that is to say a supply from an installation other than that of the Corporation) unless such person shall have previously agreed to pay to the Corporation such minimum annual sum as will give to the Corporation a reasonable return on the capital expenditure and other standing

As to supply of electricity where consumer has separate supply.

A.D. 1905. — charges incurred by the Corporation to meet the possible maximum demand of such person. In case the Corporation and the person demanding such supply of electrical energy shall fail to agree on the amount of such minimum annual sum to be paid by such person the amount of such minimum annual sum shall be fixed by an electrical engineer to be appointed as arbitrator by the President of the Institution of Electrical Engineers.

Corporation
may refuse
to supply
electrical
energy in
certain cases.

72. The Corporation may refuse to supply electrical energy to any person whose payments for the supply of electrical energy are for the time being in arrear whether any such payments be due to the Corporation in respect of a supply to the premises in respect of which such supply is demanded or in respect of other premises.

Power to
supply elec-
tric fittings
motors &c.

73.—(1) The Corporation may within the borough provide sell let for hire and fix set up repair and remove but shall not manufacture lamps meters electric lines fuses switches fittings lamp holders motors and other apparatus and things for lighting and motive power and for all other purposes for which electrical energy can or may be used or otherwise necessary or proper for the supply distribution consumption or use of electrical energy and may provide all materials and do all works necessary or proper in that behalf and may require and take such remuneration in money or such rents and charges for and make such terms and conditions with respect to the sale letting fixing setting up altering repairing or removing of such lamps meters electric lines fuses switches fittings lamp holders motors and other apparatus and things as aforesaid and for securing (both as regards the consumer and third parties) their safety and return to the Corporation as the Corporation may think fit or as may be agreed upon between them and the person to or for whom the same are sold supplied let fixed set up altered repaired or removed.

(2) Any expenses incurred by the Corporation in carrying into effect the provisions of this section shall be deemed to be expenses incurred by the Corporation under the Electric Lighting Act 1882 and not otherwise provided for and the provisions of sections 7 and 8 of that Act shall extend and apply accordingly to such expenses and any money received by the Corporation under this section shall be applied in manner provided by section 52 of the Accrington Electric Lighting Order 1890 except capital moneys which shall be applied in manner provided by section 53 of the said Order.

74. Notwithstanding anything in section 9 of the Electric Lighting Act 1882 contained the annual statement of accounts of the electric lighting undertaking of the Corporation for the time being shall after the passing of this Act be filled up on or before the thirtieth day of June in every year and shall be made up to the thirty-first day of March next preceding and section 9 of the Electric Lighting Act 1882 shall as from the passing of this Act be read and have effect as regards the electric lighting undertaking of the Corporation as if the thirtieth day of June and the thirty-first day of March were therein mentioned instead of the twenty-fifth day of March and the thirty-first day of December.

A.D. 1905.
Altering date
for filling up
annual ac-
counts for
electric
lighting.

75. No electric line fuse switch fitting meter lamp lamp holder motor apparatus or thing let for hire by the Corporation under the provisions of this Act shall be subject to distress or to the landlord's remedy for rent nor to be taken in execution under any process of law or equity or any proceeding in bankruptcy against the person or persons in whose possession the same may be. Provided that such electric line fuse switch fitting meter lamp lampholder motor apparatus or thing is marked or impressed with a sufficient mark or brand indicating the Corporation as the actual owners thereof.

Materials and
fittings sup-
plied by Cor-
poration to
be free from
distress.

76.—(1) Any local authority company or person in the urban districts of Church Oswaldtwistle or Clayton-le-Moors or the parishes of Huncoat or Altham in the rural district of Burnley or any one or more of them if authorised to transfer their powers duties liabilities and works under any Act of Parliament or Provisional Order relating to the supply of electrical energy in any such urban district or either of such parishes may with the approval of the Board of Trade transfer their powers duties liabilities and works so far as they relate to the supply of such energy within the said urban districts and parishes or any of them but not further or otherwise to the Corporation and the Corporation may accept such transfer and may raise money for the purpose thereof and of supplying energy in the said urban district or parish as the case may be under the provisions of the Electric Lighting Acts 1882 and 1888 in like manner as if such urban district or parish were part of the area of supply under the Accrington Electric Lighting Order 1890.

Power to
accept trans-
fer of electric
lighting un-
dertakings.

(2) Any capital moneys received by any such local authority in respect of any transfer under this section shall be applied by

A.D. 1905. — such authority in manner provided by subsection (2) of section 7 of the schedule to the Electric Lighting (Clauses) Act 1899.

(3) In the case of any such transfer being made to the Corporation the consent of the Corporation shall not be necessary in the event of the Lancashire Electric Power Company desiring to supply electrical energy within any such district or parish.

(4) The Corporation shall not under the provisions of any Act of Parliament or Provisional Order under which an undertaking transferred to them under the provisions of this section may have been authorised created and maintained supply electrical energy outside the borough at a less price than that charged under similar conditions of supply to consumers within the borough.

PART VII.

STREETS AND BUILDINGS.

Plans deposited with Corporation.

77. The Corporation may retain any drawings plans elevations sections specifications and written particulars descriptions or details deposited with them in pursuance of any enactment for the time being in force in the borough or any byelaw thereunder.

Approval of plan to be void after certain intervals.

78.—(1) The approval by the Corporation of any plan or section of any street or building and the notice of intention to lay out or construct such street or building shall be null and void if the execution of the work specified in such plan or section be not commenced within the following periods (that is to say) :—

As to plans or sections approved after the passing of this Act within two years from the date of such approval ;

As to plans or sections approved before the passing of this Act within two years from the passing of this Act :

And at the expiration of those respective periods fresh notice and deposit and approval shall unless the Corporation otherwise determine be requisite.

(2) The Corporation shall give notice of the provisions of this section to every person intending to lay out a new street or erect a new building the plans for which shall have been approved before the passing of this Act but the laying out of which street or the erection of which building shall not have been commenced and shall attach a similar notice to every approval of plans given subsequent to the passing of this Act.

79.—(1) No street shall be laid out more than one hundred and fifty yards in length without an intersecting street. A.D. 1905.
Intersecting streets.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

80. No person except with the consent of the Corporation shall in any new street commence to erect any new building or to excavate for the foundation thereof until the whole length of the street shall have been defined by posts or in some other sufficient manner to indicate the approved line and level thereof Any person who shall offend against this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings. No building allowed until street defined.

81. The Corporation may by resolution declare the point or limits at or within which any street is to be taken as beginning or ending. Corporation may declare where streets begin and end.

82. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force within the borough be deemed to be a new street. Continuation of existing street to be deemed new street.

83. (1) Section 40 (Deposit of building materials &c.) of the Accrington Improvement Act 1882 is hereby repealed. Deposit of building materials or excavations not to be made without consent.

(2) It shall not be lawful for any person without the consent of the Corporation in writing first obtained to lay any building materials rubbish or other thing or make any excavation on or in any street and when with such consent any person lays any building materials rubbish or other thing or makes any excavation on or in any street he shall at his own expense cause the same to be sufficiently fenced and a sufficient light to be fixed in a proper place on or near the same and to be continued every night from sunset to sunrise and shall remove such materials rubbish or thing or fill up such excavation (as the case may be) when required by the Corporation and if any person fails to comply in any respect with the requirements of this enactment he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings and the Corporation may remove any such materials rubbish or thing or fill up such excavation (as the case may be) and recover the expenses from the offender summarily as a civil debt.

A.D. 1905.

As to urgent
repairs to
private
streets.

84. In cases where urgent repairs are required to any street not being a highway repairable by the inhabitants at large and where for want of such repairs insanitary conditions or danger to passengers or vehicles in such street exist the Corporation may give notice in writing to the owners of the premises fronting adjoining or abutting on such parts thereof as may require such repairs requiring them to execute within a time to be specified in such notice such repairs in and upon such street as shall be specified in such notice and if such notice is not complied with the Corporation may if they think fit execute such repairs and the expenses thereof shall be recovered summarily by the Corporation from the owners in default.

Height of
chimneys.

85. With respect to the height of chimneys the following provisions shall have effect (that is to say):—

(1) Every chimney hereafter erected for carrying smoke or steam or for the conveying away of any noisome or deleterious gases or effluvia from any mill factory brewery or building used for manufacturing or other purposes shall be raised to such height measured from the level of the centre of the street nearest thereto as the Corporation shall reasonably approve having regard to the use of such chimney the position of dwelling-houses or other buildings near thereto the description of such building the levels of the neighbouring ground and any other condition requisite for consideration in determining such height:

(2) Any person who shall erect a chimney otherwise than in accordance with this section shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

Buildings at
corner of
streets.

86. The Corporation may require the corner of any building intended to be erected at the corner of two streets to be rounded off or splayed off to the height of the first storey or to the full height of the building and to such extent otherwise as they may determine and for any loss which may be sustained through the exercise of the powers by this section conferred upon the Corporation they shall pay compensation in accordance with the provisions of the Lands Clauses Acts.

As to tem-
porary and
movable
buildings.

87.—(1) Before any person erects or sets up any temporary or movable building he shall apply to the Corporation for permission so to do and such application shall be accompanied by

a plan and sections of the proposed building drawn to a scale of not less than one inch to every eight feet and a block plan drawn to a convenient scale showing the intended situation and surroundings of the proposed building together with a specification describing the materials proposed to be used in the construction thereof and the purpose for which the building is intended.

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(2) The Corporation shall within one month after the delivery of the plan and sections and specification signify in writing their approval or disapproval of the intended building to the person proposing or intending to set up the same.

(3) The Corporation may attach to their approval any conditions which they may deem proper with regard to the sanitary arrangements of such building the ingress thereto and the egress therefrom protection against fire and the period during which such building shall be allowed to stand.

(4) If any such building is commenced erected or set up without such application accompanied by such plan sections and specification or after the disapproval thereof by the Corporation or before the expiration of one month without such approval or is in any respect not in conformity with any condition attached by the Corporation to their approval the person who commenced erected or set up such building or if any such building is not removed within the period allowed by the Corporation or any prolongation thereof the owner of such building shall be liable to a penalty for every such offence not exceeding forty shillings and to a daily penalty not exceeding the like amount and the Corporation may cause such building to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered summarily as a civil debt from the owner of the building or from the person erecting or setting up the same at their discretion.

(5) The following buildings and works shall be exempt from the operation of this section :—

- (A) Buildings expressly exempt from the operation of the Acts or byelaws for the time being in force within the borough in respect to new buildings and any tent not remaining for more than seven days ;
- (B) Any wooden or other structure or erection of a movable or temporary character erected or set up for use during the construction alteration or repair of any

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building but such structure or erection shall be pulled down or removed immediately after the completion of such construction alteration or repair and if not so taken down or removed the Corporation may cause the same to be pulled down or removed and any expense incurred by them in or about the pulling down or removal of the building may be recovered summarily as a civil debt from the owner of the building or from the person erecting or setting up the same at their discretion; and

(c) Any wooden or other structure or erection erected or set up for the purpose of protecting or of preventing the acquisition of right of light; and

(d) Buildings other than a dwelling-house erected or set up on the premises of any railway company and used for the purposes of their railway.

Power to sell materials of temporary buildings.

88. When a temporary or other building referred to in the last preceding section is taken down or removed by the Corporation under the powers of this Part of this Act the Corporation may sell the materials thereof or any part of them and shall apply the proceeds of the sale in or towards payment of the costs and expenses incurred by them in relation to such building and shall pay the balance thereof to the owner of such building.

Yards to be flagged.

89. If any yard or open space in connexion with any dwelling-house erected before the passing of this Act shall not be so formed flagged asphalted or paved as to allow of the surface water being carried off to the drains the Corporation may give to the owner of such house notice in writing requiring him within fourteen days after such notice shall have been so given to proceed to form and to flag asphalt or pave such yard or open space for at least eighty square feet immediately adjoining the offices of such house or for the whole extent of such yard or open space if the same be less than eighty square feet in area so as to allow of the surface water being carried off to the drains and within twenty-eight days after such notice shall have been so given to complete such works and if such owner shall make default in complying with any of such requirements within the respective times aforesaid the Corporation may execute the works necessary for carrying out such requirements and the expenses incurred by them in so doing shall be paid to the Corporation by such owner and may be recoverable summarily as a civil debt.

90. The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon any private street communicating with any public street shall so fence off channel or embank their lands as to prevent the soil and sand of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully. Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

A.D. 1905.
—
For prevent-
ing soil and
sand from
being washed
into streets.

For the purpose of this section "public street" means so much of a street repairable by the inhabitants at large as is sewered and "private street" means a street not so repairable.

Provided that such owner or occupier shall not be responsible for any soil and sand from land other than his own although such soil and sand may have passed over the land of such owner or occupier.

Provided further that this section shall not apply to any land of a bonâ fide agricultural character or to any woodland.

PART VIII.

SANITARY.

91.—(1) The Corporation may on the erection of any new building when a sewer and water supply sufficient for the purpose are reasonably available by written notice to the person by whom plans relating to the new building are deposited require that such new building shall be provided with proper and sufficient water-closets and waste waterclosets or with one or more of either class of closet according as circumstances may require.

Power to
require
waterclosets
or waste
waterclosets
to new build-
ings.

(2) On the erection of any new building the Corporation may when a sewer and water supply sufficient for a watercloset or a waste watercloset are not reasonably available require one or more proper and sufficient earth or pail closets to be provided at or in connexion with such building.

(3) Any person offending against any requirement of the Corporation under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

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Conversion
of existing
closet accom-
modation
into water-
closets or
waste water-
closets.

92.—(1) The Corporation may when a sewer and water supply sufficient for the purpose are reasonably available by written notice to the owner of any building require any existing closet accommodation (other than a watercloset or waste water-closet) provided at or in connexion with such building to be altered so as to be converted into a watercloset or waste water-closet which shall comply with the byelaws of the Corporation for the time being in force and shall communicate with a sewer and they may also require a separate receptacle for ashes and house refuse to be provided at or in connexion with such building.

(2) If the owner of any such building fail in any respect to comply with a notice from the Corporation under this section the Corporation may at the expiration of a time to be specified in the notice (not being less than twenty-one days after the service of the notice) do the work specified in such notice and may recover from the owner the expenses incurred by the Corporation in so doing.

Provided that if in any case such alteration shall be required in respect of any existing closet accommodation which prior to the service of the notice under this section shall not have been certified by the medical officer to be insufficient for the necessities of the inhabitants of the building or to be in such state as to create a nuisance or to be injurious to health then the Corporation shall bear and pay such sum towards the expenses incurred by them (not less than one-half thereof) as the Corporation may consider just and proper according to the circumstances and the remainder of the expenses shall be borne by the owner.

(3) The Corporation may contribute towards the expenses incurred in making any alteration of any closet accommodation in pursuance of this section in any case in which they may not be required to bear any part of such expense.

(4) The notice under the provisions of this section shall state the effect of the provisions of this section.

As to
appeal under
two last
preceding
sections.

93.—(1) Where any person deems himself aggrieved by any requirements of the Corporation under either of the two last preceding sections or disputes the reasonableness of the expenses charged to him by the Corporation under such sections such person may within fourteen days after the service of notice of the requirement or of a demand for payment of the expenses

appeal to a court of summary jurisdiction and the court may make such order in the matter as to them may seem equitable and the order so made shall be binding and conclusive on all parties: A.D. 1905.

Provided nevertheless that the right of appeal subsequent to the service of a demand for payment shall be restricted to the ground of the reasonableness of the amount of the expenses and the appellant shall be precluded from raising at that stage any other question.

(2) Pending the decision of the court upon such appeal the Corporation shall not be empowered to execute any works included in the notice and any proceedings which may have been commenced for the recovery of such expenses shall be stayed.

94. The Corporation may make byelaws with respect to waterclosets and waste waterclosets and may by such byelaws prescribe the description or nature size materials position and level thereof and of the apparatus and the manner of flushing the same and the means to be provided for protecting the same from frost. Byelaws as to water-closets &c.

95. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings. Provisions as to houses without water supply.

96. The powers of the Corporation under section 39 of the Public Health Act 1875 shall extend to authorise them to provide and maintain public conveniences and lavatories in or under any street repairable by the inhabitants at large for the use of the public and to employ and pay attendants and to make reasonable charges for the use of any public conveniences (other than a urinal) or of any lavatory so provided and the Corporation may make byelaws for the management of such public conveniences and lavatories and as to the conduct of persons frequenting the same and may let any such public conveniences and lavatories for such periods not exceeding three years and upon and subject to such terms and conditions as they may think fit. Public conveniences and lavatories.

97. It shall be lawful for the Corporation to provide and maintain orderly bins for the collection and temporary deposit of street refuse in upon or under the streets of the borough of such dimensions and in such positions as they may from time to time determine. Street orderly bins.

A.D. 1905.

Reconstruction of drains.

98. It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Corporation except in accordance with the provisions of the byelaws relating to the drainage of new buildings.

Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Improper construction or repair of watercloset or drain.

99. If a watercloset waste watercloset or drain is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a penalty not exceeding twenty pounds Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence.

Wilful damage to drains water-closets &c.

100. Any person causing any drain watercloset waste watercloset earth-closet privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by wilfully stopping up interfering with or improperly using the same or any such water supply apparatus pipe or work shall be liable to a penalty not exceeding five pounds Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act.

Charge for removal of trade refuse.

101. If any trade refuse or any building materials or other materials or rubbish of a like description be deposited in any dustbin ashpit or ash tub the Corporation may make a reasonable charge for the removal of the same which charge shall be paid to the Corporation by the occupier of the premises in respect of which the charge is made and may be recovered summarily as a civil debt.

102. If any land other than land now forming part of any common adjoining any street be allowed to remain unfenced or the fences thereof are allowed to be or remain out of repair and such land is owing to the absence or inadequate repair of such fence a source of danger to passengers or is used for any immoral or indecent purpose or for any purpose causing inconvenience or annoyance to the public then after the expiration of fourteen days' notice from the surveyor to the owner or occupier of the same or without any notice if the Corporation are unable after diligent inquiry to discover the name or place of abode of such owner or occupier the Corporation may cause the same to be fenced or may cause the fences to be repaired in such manner as they think fit and the expenses thereby incurred may be recovered from such owner or occupier summarily as a civil debt.

A.D. 1905.
Vacant land
to be fenced.

103. For the purpose of the Public Health Act 1875—

As to
nuisances.

- (A) Any cistern used for the supply of water for domestic purposes so placed constructed or kept as to render the water therein liable to contamination causing or likely to cause risk to health;
- (B) Any gutter drain shoot stack pipe or down spout of a building which by reason of its insufficiency or its defective condition shall cause damp in such building or in an adjoining building; and
- (C) Any deposit of material in or on any building or land which shall cause damp in such building or in an adjoining building so as to be dangerous or injurious to health;

shall be deemed to be a nuisance within the meaning of the said Act.

104. It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal intended for the food of man or to expose or deposit for sale within the borough a carcase so blown or inflated or any part thereof and any person who shall offend against this enactment shall for every such offence be liable to a penalty not exceeding five pounds.

Prohibition
of blowing
or inflating
carcases.

PART IX.

INFECTIOUS DISEASE.

105. Every dairyman supplying milk within the borough from premises whether within or beyond the borough shall

Dairymen to
notify in-
fections

A.D. 1905. notify to the medical officer all cases of infectious disease among persons engaged in or in connexion with his dairy as soon as he becomes aware or has reason to suspect that such infectious disease exists and any dairyman who makes default in so doing shall be liable to a penalty not exceeding forty shillings.

Prohibition on infected person carrying on business. **106.** No person suffering from infectious disease shall milk any animal the milk of which is intended for consumption within the borough or pick fruit intended for consumption within the borough or engage in any trade or business connected with food intended for consumption within the borough or carry on any trade or business in such a manner as to be likely to spread infectious disease within the borough and if he does he shall be liable to a penalty not exceeding twenty shillings.

Disinfection of clothes. **107.** Any person taking or sending to any public wash-house or to any person for the purpose of being washed or mangled any bedding clothing or other things which to his knowledge have been exposed to infection from infectious disease shall previously to so taking or sending the same cause such bedding clothing or other things to be disinfected by the Corporation or to the satisfaction of the medical officer and in default shall be liable to a penalty not exceeding forty shillings and the Corporation shall make provision for disinfecting and shall on application disinfect at their expense such bedding clothing and other things.

Compensation to dairy-men. **108.** If any dairyman shall at the request of the Corporation stop his milk supply within the borough on account of the spread or suspected spread of infectious disease or the probability that the consumption of such milk may cause tuberculosis to persons residing within the borough the Corporation may make compensation to him for any loss occasioned by such stoppage and such compensation may be paid out of the district fund or general district rate.

Compensation to persons ceasing employment. **109.** If any person shall at the request of the Corporation or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease within the borough the Corporation may make compensation to him for any loss he may sustain by reason of such stoppage.

Protection against infection of books in **110.** No person shall take out of any public or lending library any book for use in any house in which there is a person suffering from infectious disease and no person shall return to

any such library any book which has been to his knowledge exposed to infection from infectious disease but he shall at once give notice that it has been exposed to infection to the inspector of nuisances and leave the book at the office of the inspector of nuisances who shall cause the same to be disinfected and then returned to the librarian or proprietor or destroyed and if destroyed the Corporation shall pay to the owner thereof its value Any person who shall offend against this enactment shall be liable to a penalty not exceeding forty shillings.

A.D. 1905.
lending
libraries.

111. The Corporation may provide or contract with any person or persons to provide nurses for attendance upon any person suffering from infectious disease within the borough and may charge a reasonable sum for the services of any nurse so provided.

Corporation
may provide
nurses.

112. It shall not be lawful to hold any wake over the body of any person who has died of infectious disease and the occupier of any house or premises or part of a house or premises who permits or suffers any such wake to take place in such house or premises or part of a house or premises and every person who attends to take part in such wake shall be liable to a penalty not exceeding forty shillings.

Wake not to
be held over
body of per-
son dying of
infectious
disease.

113. No person being the parent or having the care or charge of a child who is or has been suffering from infectious disease shall after a notice from the medical officer that the child is not to be sent to school permit such child to attend school without having procured from the medical officer a certificate (which shall be granted free of charge upon application) that in his opinion such child may attend without undue risk of communicating such disease to others.

Child suffer-
ing from
infectious
disease not
to attend
school.

If any person offends against this enactment he shall be liable to a penalty not exceeding forty shillings.

114. The medical officer may enter any public elementary school within the borough at all reasonable times and examine the scholars attending the same and may exclude from attendance thereat for such period as he shall consider requisite any scholar who in his opinion is suffering from infectious disease or is likely to spread infection.

Power to
medical
officer to ex-
amine school
children.

The medical officer shall upon the exclusion of any scholar in manner aforesaid give notice thereof in writing to the principal or person in charge of such school or (if such school is divided

A.D. 1905. — into separate departments and there is no principal or person in charge of the whole school) the person in charge of the department which such scholar attends and shall send a copy of such notice to the parent or guardian of the scholar.

Any person who obstructs the medical officer in carrying into effect the provisions of this section or who permits any scholar to attend school after he shall have been excluded as aforesaid and before the expiration of the period of exclusion shall be liable to a penalty not exceeding forty shillings.

For regula-
ting manu-
facture and
sale of ice
cream.

115.—(1) Any person being a manufacturer of or vendor of or merchant or dealer in ice cream or other similar commodity who within the borough—

(A) Causes or permits ice cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any cellar room or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(C) Omits on the outbreak of infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable for every such offence on summary conviction to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or any similar commodity) suffering from infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Corporation may compensate the owner of the ice cream or similar commodity or materials so destroyed.

As to dealers
in ice cream.

116. Every dealer in ice cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand must have his name and address legibly painted or inscribed on such cart barrow or stand and if he fails to comply with this enactment he shall be liable to a penalty not exceeding forty shillings.

117. Public notice of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two local newspapers circulating in the borough and by a notice affixed outside the offices of the Corporation and by handbills or such further means as the Corporation deem reasonable for conveying notice of the provisions of this Part of this Act to persons affected or likely to be affected thereby. A copy of a newspaper or the newspapers containing the advertisement shall be sufficient evidence that the provisions of this section have been complied with.

A.D. 1905.
Public notice
to be given
of provisions
of this Part
of Act.

PART X.

COMMON LODGING-HOUSES.

118. The keeper of every common lodging-house shall reside constantly and shall remain between the hours of nine o'clock in the afternoon and six o'clock in the forenoon in such house and shall manage control and exercise proper supervision over the same and the inmates thereof except at such times as some other person appointed by him for that purpose and whose name is registered at the office of the Corporation shall with the approval of the Corporation in writing under the hand of the town clerk (which approval and registration shall be revocable by the Corporation) reside and remain in such house and manage control and exercise proper supervision over the same and the inmates thereof as the case may be. Any person who shall offend against this enactment shall for every such offence be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Regulations
as to com-
mon lodging-
house
keepers.

119. Every common lodging-house whether registered before or after the passing of this Act shall to the satisfaction of the Corporation be provided with sufficient closet accommodation having regard to the number of lodgers who may be received in such common lodging-house and all waterclosets and urinals shall be provided with a proper water supply laid on for flushing purposes. Any keeper of a common lodging-house who shall make default for twenty-eight days in complying with a notice from the Corporation requiring him to comply with the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Closet ac-
commodation
to be pro-
vided for
inmates of
common
lodging-
houses.

A.D. 1905.

Registration
of common
lodging-
houses and
keepers.

120.—(1) Notwithstanding anything in the Public Health Act 1875 the registration of a common lodging-house or of the keeper of a common lodging-house shall operate for one year only and application for the renewal of such registration shall be made to the Corporation on or previous to the thirty-first day of March in every year.

(2)—(A) The Corporation may notwithstanding the provisions of section 78 of the Public Health Act 1875 refuse to register or to re-register any person as a common lodging-house keeper unless they are satisfied of his character and fitness for the position :

(B) Any person aggrieved by such refusal may appeal to a court of summary jurisdiction within fourteen days after such refusal provided he give twenty-four hours' notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as they may think fit and award costs to be recoverable summarily as civil debts.

(C) Every person who without being registered in accordance with the Public Health Act 1875 and this Act shall keep a common lodging-house within the borough and every person who after the thirty-first day of March one thousand nine hundred and six shall keep a common lodging-house without the registration of such person being renewed for the current year shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Notice to
common
lodging-
house
keepers.

121. Notice of the provisions of this Part of this Act shall be served upon the keeper of every common lodging-house either personally or by leaving the same at the common lodging-house.

PART XI.

PUBLIC BUILDINGS RECREATION GROUNDS.

Organ in
municipal
buildings
and organist.

122.—(1) The Corporation may provide and maintain in any municipal buildings an organ and may appoint an organist at such salary or remuneration as they think proper and may admit the public to performances on the organ either without charge or for such charge as they think proper and subject to such regulations as the Corporation from time to time deem expedient.

(2) All receipts from performances under this section shall be carried to the credit of the borough fund and all expenses in connexion with such performances shall be defrayed out of the borough fund. A.D. 1905.

123. The Corporation may pay or contribute out of the general district rate towards the payment of a public band or bands of music to perform in any public park garden or recreation ground or other place of public resort within the borough belonging to or held by the Corporation and the Corporation may enclose an area within which such band shall play and may make byelaws for regulating the time and place for the playing of the band and the payments to be made for admission within the said enclosure and for securing good and orderly conduct during the playing of the band. Provided that the amount of such payment or contribution by the Corporation for or towards such band shall not in any one year exceed an amount which would be produced by a rate of one halfpenny in the pound on the assessable value of the borough to the general district rate. Public bands.

124. The Corporation may place or authorise any person or persons to place shelters seats or chairs for the use of the public in any street park recreation ground or pleasure ground or other public place and may if they think fit charge or allow such person or persons to charge reasonable sums for the use of the chairs and may make byelaws for regulating the use of shelters seats and chairs and for preventing injury or damage thereto. Shelters seats or chairs may be provided.

PART XII.

POLICE.

125. Any person who shall frequent and use any street or public place in the borough either on behalf of himself or of any other person for the purpose of book-making betting or wagering or agreeing to bet or wager or paying or receiving or settling any bet or wager or receiving or paying any money as or in respect of any bet or wager shall be liable to a penalty not exceeding for the first offence five pounds for the second offence ten pounds and for the third and every subsequent offence fifty pounds. Betting.

Any police constable may take into custody without warrant any person committing an offence under this section and the officer in charge of the police station to which such person is taken may seize and detain all books cards papers and other articles relating to betting which may be found in his possession.

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PART XIII.

FINANCE.

Power to
borrow.

126. The Corporation may from time to time independently of any other borrowing power borrow at interest money for any of the following purposes (that is to say) :—

- (A) For the construction of the tramways by this Act authorised and the reconstruction of the existing tramways the sum of seventy thousand pounds :
- (B) For the purposes of the electrical equipment of the Corporation tramways the sum of forty thousand five hundred pounds :
- (C) For the purchase of the rolling stock of the tramway company and other incidental expenses in connexion with the Corporation tramways the sum of seven thousand pounds :
- (D) For the lands by this Act authorised to be purchased the sum of five thousand pounds :
- (E) For the purchase of motors and apparatus in connexion with the electrical undertaking the sum of five thousand pounds :
- (F) For the conversion of the existing closet accommodation in the borough into closet accommodation on the water carriage system the sum of seven thousand pounds :
- (G) For paying the costs charges and expenses of this Act as herein-after defined the sum requisite for that purpose :

And the Corporation may with the approval of the Board of Trade as to tramway purposes and of the Local Government Board as to any other of the purposes of this Act borrow such further moneys as the Corporation may require.

The Corporation may repay the moneys borrowed under this Act and pay the interest thereon as regards the purposes (A) (B) (C) and (D) out of tramway revenue and the borough fund and borough rate as regards the purpose (E) out of the revenue of the electrical undertaking and the district fund and general district rate as regards the purpose (F) out of the district fund and general district rate and as regards the purpose (G) as to one half thereof out of the borough fund and borough rate and as to the remaining half thereof out of the district fund and general

district rate and as to moneys borrowed with the approval of the Local Government Board or the Board of Trade out of such funds and revenues of the Corporation as those Boards may respectively prescribe. A.D. 1905.

Provided that the provisions of this section shall not limit the power conferred upon the Corporation by this Act to charge the whole of their revenues as the security for money so borrowed.

127. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another. Provided that the provisions of this Act whereof the marginal note is "Sinking fund" shall apply in lieu of the provisions of section 15 of the Local Loans Act 1875. Mode of raising money.

128. The powers of borrowing money by this Act given shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned. Certain regulations of Public Health Act as to borrowing not to apply.

129. Sections 236 237 and 238 (except as to the form of mortgage and transfer of mortgages) of the Public Health Act 1875 (as to the register and transfer of mortgages) shall extend and apply to mortgages granted under this Act. Provisions of Public Health Act as to mortgages to apply.

130. The Corporation shall pay off all moneys borrowed by them under this Act within the respective periods (in this Act referred to as "the prescribed period") following (that is to say) :— Periods for repayment of moneys borrowed.

As to moneys borrowed for the purposes (A) and (F) mentioned in the section of this Act of which the marginal note is "Power to borrow" within thirty years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purposes (B) in the said section mentioned within twenty years from the date or dates of the borrowing of the same :

As to moneys borrowed for the purposes (D) in the said section mentioned within fifty years from the date or dates of the borrowing of the same :

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As to moneys borrowed for the purposes (c) and (e) in the said section mentioned within ten years from the date or dates of the borrowing of the same:

As to moneys borrowed for the purpose (g) in the said section mentioned within five years from the date of the passing of this Act:

As to moneys borrowed with the approval of the Local Government Board or Board of Trade within such periods as those respective Boards may think fit to sanction.

Power to
use one form
of mortgage
for all pur-
poses.

131.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and the place of payment and shall be sealed with the corporate seal of the Corporation and may be made in the form contained in the Third Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever and shall also rank equally with all other securities granted by the Corporation at any time after the date of the first creation of Accrington Corporation Stock.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation referred to in section 8 of the Accrington Corporation Consolidation of Loans Act 1890.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the sums secured by mortgages granted under this section and all such sums shall be repaid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been repayable respectively if this section had not been enacted.

A.D. 1905.

(6) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the treasurer or other the person having the custody of the same refusing to allow such inspection shall be liable to a penalty not exceeding five pounds.

(7) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Third Schedule to this Act or to the like effect.

(8) There shall be kept at the office of the Corporation a register of the transfers of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the treasurer who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(9) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(10) If the treasurer wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

132. The Corporation shall pay off any moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal

Mode of
payment off
of money
borrowed.

A.D. 1905. — and interest combined or by means of a sinking fund or partly by one of these methods and partly by another or others of them.

Sinking
fund.

133.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called “a non-accumulating sinking fund”; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is herein-after called “an accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investment of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the

rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation: A.D. 1905.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as that Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily, or permanently to such amount as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an

A.D. 1905. — accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose as the Corporation with the consent of the Local Government Board may determine.

Protection of
lender from
inquiry.

134. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Corporation
not to regard
trusts.

135. The Corporation shall not be bound to see to the execution of any trust whether expressed implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or any interest thereon not entered in their register and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

Appointment
of receiver.

136. The mortgagees of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five hundred pounds in the whole. The application for the appointment of a receiver shall be made to the High Court.

Power to re-
borrow.

137. If the Corporation pay off any moneys borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of the proceeds of the sale of land or

other property or out of fines or premiums on leases or out of other moneys received on capital account not being borrowed moneys they may re-borrow the same but all moneys so re-borrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the moneys originally borrowed and the obligations of the Corporation with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such re-borrowing. A.D. 1905.

138. Money borrowed by the Corporation under this Act shall be applied only for the purposes of this Act to which capital is properly applicable and for which it is authorised to be borrowed. Application of money borrowed.

139.—(1) The treasurer shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the treasurer showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the treasurer shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. Annual return to Local Government Board with respect to sinking fund.

A.D. 1905.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Power to use sinking fund instead of borrowing.

140. Where the Corporation are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund as shall be available for the repayment of moneys borrowed and charged upon all the revenues of the Corporation in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and moneys so raised shall for the purposes of this Act be deemed to be moneys borrowed under a statutory borrowing power Provided that when exercising this power the Corporation shall—

- (A) Withdraw from such sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund;
- (B) Credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from such sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of such sinking fund;

(c) Debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to repayment and re-borrowing shall apply thereto accordingly. A.D. 1905.

141. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made may be defrayed by the Corporation out of the borough fund and borough rate or the district fund and general district rate as the Corporation may in their discretion having regard to the object of the expenditure deem just. Expenses of execution of Act.

142.—(1) The Corporation may at any time hereafter and from time to time make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may make provision in regard to all matters incidental thereto. Scheme for fixing equated periods.

(2) No scheme made by the Corporation under this section shall have any force or effect until confirmed by the Local Government Board who may by order confirm the same with or without modifications and when so confirmed the scheme shall notwithstanding any enactment order or sanction to the contrary have full force and effect and such scheme shall be deemed to be within the powers of this Act. Provided that nothing in any scheme made under this section shall prejudice or affect the security rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any corporation stock existing at that time except with the consent of such mortgagee or holder.

(3) The Corporation may with the sanction of the Local Government Board borrow such sums as may be necessary for the purpose of giving effect to such scheme and for compensating the holders of securities of the Corporation for their consent thereto.

(4) Any scheme confirmed under this Act may be altered extended amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

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PART XIV.

FIRE INSURANCE FUND.

Fire insur-
ance fund.

143.—(1) The Corporation may if they think fit establish a fund to be called “the fire insurance fund” with a view of providing a sum of money which in the event of a fire shall be available for the purpose of reconstructing rebuilding repairing restoring replacing and making good any loss or damage by or in consequence of fire to any buildings works and property belonging or on loan to or under the care custody or control of the Corporation.

(2) In each year after the establishment of the fire insurance fund the Corporation shall pay into that fund such a sum as would in their opinion be equal to the aggregate amount of the premium payable in the event of the Corporation insuring their buildings works and property in some public fire insurance office in England but when the fund shall amount to the sum of twenty thousand pounds the Corporation may if they think fit discontinue such yearly payments but so that if the fund is at any time reduced the Corporation shall recommence and continue the yearly payment until the fund be restored to the sum of twenty thousand pounds. Provided that nothing in this Act shall affect the power of the Corporation to insure any of their buildings works and property against loss or damage by fire in any public insurance office in England and if the Corporation so insure any of their buildings works and property the yearly sums payable to the fire insurance fund shall during the continuance of any such insurance be reduced by the amount of the premiums payable in respect of such insurance.

(3) The Corporation shall provide the yearly payments aforesaid by contributions from the rents and revenues of the lands buildings and undertakings or from the respective funds or rates which if the buildings works and property were insured in a public insurance office would be properly chargeable with the payment of the premiums of such insurance and if there be no rents or revenue specially chargeable then by contributions from the borough fund and borough rate.

(4) Except so far as the fire insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses from or in consequence of fire all moneys for the time being standing to the credit of the fire insurance fund shall be invested in statutory securities and the

interest and annual proceeds arising from those securities shall be invested and accumulated until the fund amounts to the sum of twenty thousand pounds and when and so long as the fund amounts to that sum the interest and annual proceeds of the securities shall be carried to the credit of the fund or funds to which the same are properly applicable. A.D. 1905.
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(5) If at any time and from time to time the fire insurance fund shall be insufficient to make good any loss or damage sustained by the Corporation by or in consequence of fire they may with the sanction of the Local Government Board borrow such sums of money as will be necessary to make up the deficiency.

PART XV.

MISCELLANEOUS.

144. The Corporation may if they think fit form a fund to be called "the accident fund" to provide for meeting claims upon them under the Employers Liability and Workmen's Compensation Acts in respect of any accident occurring in the execution of any of their powers as a Corporation and such fund shall be formed by annually appropriating thereto out of any of their revenues such sum as they from time to time deem expedient and investing the same at compound interest in or upon any statutory securities and accumulating the same and the Corporation may from time to time or at any time resort to that fund for any purpose mentioned in this section. The said fund shall at no time exceed the sum of ten thousand pounds but if it be reduced at any time it may be restored to the said amount. Power to
create acci-
dent fund.

145.—(1) The Corporation may if they think fit grant a gratuity (not exceeding one year's pay) to any of their officers or servants who may be disabled or injured in their service or may become incapacitated through age or other infirmity or to the widow or family of any such officer or servant who may die in their service. Power to,
grant gratui-
ties in cer-
tain cases.

(2) Every such gratuity shall be charged on and paid out of the fund or funds on or out of which the salary wages or emoluments of such officer or servant would have been charged or paid if he had continued in his office or service.

146.—(1) Every boarding or similar structure in or abutting on or adjoining any street shall be securely erected and maintained. Provision as
to hoardings
and other
structures

A.D. 1905.

used for
advertising
purposes.

(2) It shall not be lawful after the passing of this Act to erect wholly or partly for advertising purposes any such hoarding or similar structure to a greater height than twelve feet above the level of such street without the consent of the Corporation and such consent may be given subject to such conditions as to the submission of a plan and elevation and as to the dimensions and maintenance of such hoarding or similar structure as the Corporation may determine.

(3) The owner or other person using any hoarding wall or other structure for advertising purposes whether erected before or after the passing of this Act shall at all times hereafter keep and maintain the same in proper and safe repair and condition and if any paper affixed for advertising purposes to such hoarding wall or other structure falls off or becomes detached shall forthwith remove and clear away such paper.

(4) Any person who acts in contravention of this section or of the terms and conditions (if any) of such consent shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

(5) Any consent or condition given or made under this section may be under the hand of the town clerk or surveyor.

(6) Any person aggrieved by the refusal of the Corporation to grant such consent or by the conditions attached to such consent may appeal to a court of summary jurisdiction after the expiration of two clear days after the decision of the Corporation is notified to him in writing under the hand of the town clerk provided he give twenty-four hours' notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt.

Power to
manufacture
slabs &c.
from destruc-
tor refuse.

147. The Corporation may convert any clinkers or other refuse or surplus material or product arising in connexion with their dust destructor into slabs of artificial stone bricks concrete mortar and other materials and for that purpose may purchase take on lease or otherwise acquire lands by agreement and may upon any lands so acquired by them or subject to the sanction of the Local Government Board and to such conditions as that Board may prescribe upon any lands for the time being vested in them and available for the purpose construct such buildings and works and may in connexion therewith provide and erect such machinery plant and appliances as may

be required and any such slabs bricks concrete mortar or other materials so produced may be utilised by the Corporation for repairing streets or for any other purposes connected with the work of the Corporation for which they may be suitable or may be sold by the Corporation who shall carry the proceeds arising from any sales thereof to the credit of the district fund. A.D. 1905.

148. For the better and more effectually carrying into execution the powers and duties of the Corporation under the Public Libraries Acts 1892 to 1901 those Acts shall be read and have effect as if the limit thereby imposed on the amount authorised to be levied by or added to a rate were extended so as not to exceed the sum of twopence in the pound. Limit of library rate extended.

149. The Corporation may close to the public and reserve the exclusive use of any swimming bath belonging to them and may grant the use thereof to any company body or persons either gratuitously or for payment for swimming contests practices or exhibitions of aquatic exercises and may demand and take such sums for the exclusive use of such baths or for admission of persons thereto as they may think fit. Provided that no such swimming bath shall be closed under the powers of this section for more than six hours on any one day nor more than two days in any one week. Power to close baths and charge for exclusive use thereof.

150. No matter or thing done or contract entered into by the Corporation and no matter or thing done by the town clerk or by any member officer or clerk of the Corporation or any person whomsoever acting under the direction of the Corporation shall if the matter or thing be done or the contract be entered into bona fide for the purpose of executing this Act subject them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by the Corporation or town clerk member officer clerk or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the Corporation. Persons acting in execution of Act not to be personally liable.

151.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875. Inquiries by Local Government Board.

A.D. 1905.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Confirmation
of byelaws.

152. The provisions of sections one hundred and eighty-two to one hundred and eighty-five of the Public Health Act 1875 so far as they relate to byelaws made by an urban authority shall apply to byelaws made by the Corporation under the powers of this Act except byelaws to which the provisions of the Tramways Act 1870 are applicable under this Act.

Authentica-
tion and
service of
notices &c.

153. Where any notice or demand under this Act requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. Notices orders and other documents required or authorised to be served under this Act may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided always that in the case of any company any such notice or document shall be delivered or sent by post addressed to the secretary of the company at their principal office or place of business.

Powers of
Act cumu-
lative.

154. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred on them by the Public Health Acts or any of them and the Municipal Corporations Acts and the Corporation may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed. Provided that no person shall incur more than one penalty (other than a daily penalty) for the commission of the same offence.

Informations
by whom to
be laid.

155. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid by an officer of the Corporation authorised in that behalf or by the town clerk.

Compensa-
tion how to
be deter-
mined.

156. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for

such amount shall in case of dispute be ascertained in the manner provided by the Public Health Acts. A.D. 1905.

157. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer of the Corporation or by any conviction or order made by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts and in regard to any such order the Corporation may in like manner appeal. As to appeal.

158. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of penalties &c.

159. All penalties recovered under this Act or under any byelaw thereunder shall except in the case of penalties recovered against the Corporation be paid to the treasurer and be by him carried to the credit of the borough fund or the district fund according to the nature of the case. Penalties to be paid over to treasurer.

160. Where any damages expenses costs or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted. Damages and charges to be settled by court.

161. Whenever the Corporation under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Corporation or of any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or in respect of or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be deemed to be part In executing works for owner Corporation not liable for damage save in case of negligence.

A.D. 1905. of the expenses payable by such owner or occupier and shall be recoverable accordingly.

Compensation may be in land &c.

162. The Corporation when they are required by any enactment to make compensation to any person interested in any lands may by agreement with such person make such compensation wholly or partly in works land or money but in the case of land for the alienation of which the consent of any public department is required only with such consent.

Consent of Corporation to be in writing.

163. All consents given by the Corporation under the provisions of this Act shall be given in writing and unless otherwise prescribed shall be given under the hand of the town clerk.

Evidence of appointments authority &c.

164. Where in any legal proceedings taken by or on behalf of the Corporation whether under this Act or under any general or local Act passed before or after this Act it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the Corporation or to prove any resolution of the council or of any committee of the council a certificate of such appointment authority or resolution purporting to be authenticated by the signature of the mayor or town clerk shall be *prima facie* evidence of such appointment authority or resolution without further proof of the holding of any meeting or the production of any minute book or other record or document.

Saving for indictments &c.

165. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequences to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence.

Judges not disqualified

166. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Corporation or liable to any rate.

Audit of accounts.

167. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid under this Act.

168. For the protection of the mayor aldermen and burgesses of the borough of Haslingden the following provisions shall apply and have effect (that is to say) :—

A.D. 1905.
For protection of Corporation of Haslingden.

Notwithstanding anything contained in this Act none of the rights or powers thereby conferred shall be exercised within the borough of Haslingden or in relation to any tramways tramroads or light railways therein or to any supply of electrical energy either therein or for use therein without in every case the consent in writing of the Corporation of that borough first being obtained.

169. Notwithstanding anything contained in this Act none of the rights or powers thereby conferred upon the Corporation shall extend to or apply within the borough of Rawtenstall or be or become exerciseable in relation to any tramways tramroads or light railways therein or so as to enable the Corporation to supply electrical energy within or for use within the said borough.

For protection of Corporation of Rawtenstall.

170. The provisions of this Act shall not unless otherwise agreed with the tramway company come into operation as respects any of the tramways demised by the said indenture of the fifth day of April one thousand eight hundred and eighty-six until the expiration or sooner determination of the said indenture nor shall the tramway company in respect of their tramway undertaking be assessed for the purposes of rates in respect of any expenditure incurred by the Corporation for tramway purposes under the provisions of this Act.

Saving for tramway company.

171. Nothing in this Act affects prejudicially any right power privilege or exemption of the Crown.

Crown rights.

172. The costs charges and expenses preliminary and of and incidental to preparing obtaining and passing this Act as taxed by the taxing officer of the House of Lords or House of Commons shall be paid by the Corporation.

Costs of Act.

A.D. 1905.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

THE AGREEMENT HEREIN-BEFORE REFERRED TO.

MEMORANDUM OF AGREEMENT made the 27th day of October 1904 between JAMES CUNLIFFE cotton spinner and manufacturer WILLIAM HAWORTH cotton spinner and manufacturer JOHN RHODES secretary of technical school all of the borough of Accrington in the county of Lancaster WILLIAM RATCLIFFE of St. Annes-on-the-Sea in the said county esquire THOMAS TOWNLEY KENYON of the county borough of Stockport bank manager and FREDERICK NOBLE HAYWOOD of Blackpool in the said county esquire the present trustees of the Accrington Mechanics' Institution (herein-after called "the Trustees") of the one part and THE MAYOR ALDERMEN AND BURGESSES of the said borough of Accrington acting by the council as and being the "library authority" in and for the said borough (herein-after called "the Corporation") of the other part.

WHEREAS by a surrender or memorandum in writing duly passed and executed bearing date the fourteenth day of April one thousand eight hundred and seventy-seven In consideration of the sum of two thousand and ten pounds paid by John Hargreaves Benjamin Hargreaves James Cunliffe William Haworth David Tunks William Ratcliffe John Rhodes Thomas Townley Kenyon Thomas Holgate and Frederick Noble Haywood therein-after called for the sake of brevity the surrenderees to Henry Unsworth Hargreaves and James Parkinson in the said surrender particularly described :

First All that plot piece or parcel of land or ground situated in Old Accrington in the said county being part of a close of meadow land known by the name of "Woodcock Trees" with the messuage or dwelling-house and other buildings erected upon part thereof and bounded on the front or east side thereof by a street called St. James' Street and contained in length on that side thirty-nine yards on the back or west side thereof by the said close of land and contained in length on that side thirty-nine and a half yards on the south side thereof by other part of the said close of land and in length on that side thirty yards and on the north side thereof by a certain other street called Timber Street and in length on that side thirty yards and contained in the whole one thousand one hundred and seventy-seven and a half superficial square yards of land or ground or thereabouts in which said admeasurement was included six feet in breadth all along and co-extensive

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with the east and north sides thereof and which was for ever thereafter to remain open and unbuilt upon for the purpose of forming a parapet or foot-road for each of the said streets and also the whole of the fence wall all along the west and south sides thereof and they the said surrenderees their heirs or assigns were for ever thereafter to repair and keep in good and proper repair the said two parapets or footways And also one half part of the said two streets as adjoined to and was co-extensive with the said plot of land intended to be thereby surrendered all which said premises were of the yearly rent to the Lord of the Manor of Accrington Old Hold of one halfpenny together with the appurtenances (it being thereby understood and agreed that the said surrenderees their heirs or assigns should not at any time thereafter open put out or continue any window or windows light or lights within seven feet of the west and south boundary line of the premises thereby surrendered) And secondly all that plot of land situated in Old Accrington aforesaid being other part of the said close of meadow land called "Woodcock Trees" bounded on the easterly side thereof by the plot of land therein-before first described and contained in length on that side thirty-nine yards and eighteen inches on the southerly side thereof by premises belonging to Mr. Charles Hall and in length on that side twenty-one yards and thirty-three inches on the westerly side thereof by one half of a back road of four yards wide and in length on that side thirty-nine yards and ten inches and on the northerly side thereof by a certain street called Willow Street and in length on that side twenty-one yards eleven inches and containing in the whole eight hundred and fifty-one superficial square yards of land or thereabouts which admeasurement included a space of land six feet in width all along and co-extensive with the northerly side of the said plot of land to be left open and unbuilt upon for a footpath and another space of two yards in width all along and co-extensive with the westerly side thereof to be for ever thereafter left open and unbuilt upon for the purpose of forming the easterly half part of an intended back road of four yards in width which said plot of land and premises were of the yearly rent to the Lord of the said Manor of twopence and were more particularly delineated on the plan drawn in the margin of a certain indenture bearing date the twenty-seventh day of July one thousand eight hundred and sixty-one together with the appurtenances and particularly the right for the said surrenderees their heirs and assigns tenants servants lessees and others to use for all purposes the said street called Willow Street and the said back road of four yards wide as delineated and shown on the said plan (reserving thereout unto the said Henry Unsworth Hargreaves and James Parkinson their heirs and assigns tenants lessees servants and workmen the right to use the said footpath and easterly half part of the said back road respectively included in the said admeasurement) were surrendered according to the custom of the said manor by the said Henry Unsworth Hargreaves and James Parkinson to the uses following that was to say as to the said hereditaments and premises herein-before first described to the use and behoof of the said surrenderees their heirs and assigns for ever as joint tenants and not as tenants in common subject nevertheless to the payment for ever thereafter unto Matthew Dewhurst his heirs and assigns of the clear yearly rent or sum of twelve pounds sixteen shillings on the first day of September yearly free and clear of all parliamentary and other taxes charges assessments

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And whereas at a court holden at Haslingden for the said manor on the seventeenth day of April one thousand eight hundred and seventy-seven the said John Hargreaves Benjamin Hargreaves James Cunliffe William Haworth David Tunks William Ratcliffe John Rhodes Thomas Townley Kenyon Thomas Holgate and Frederick Noble Haywood were duly admitted tenants of the several and respective premises comprised in the herein-before recited surrender :

And whereas by a deed poll dated the 25th day of June 1883 under the respective hands and seals of the said John Hargreaves (since deceased) the said James Cunliffe and William Haworth David Tunks (since deceased) the said William Ratcliffe John Rhodes and Thomas Townley Kenyon Thomas Holgate (since deceased) and the said Frederick Noble Haywood being a declaration of trusts of the Accrington Mechanics' Institution After reciting as is in this agreement herein-before recited And that the said sum of £2,010 the consideration in the said recited surrender mentioned to have been paid by the parties thereto was not paid by them out of their own moneys but was in fact money which had been publicly subscribed for the purchase and erection of premises suitable for a mechanics' institution for the town of Accrington And reciting that the parties thereto were at a meeting held on the 6th day of September 1875 duly appointed pursuant to the rules of the institution trustees to hold in trust for the purposes of the institution the hereditaments and premises comprised in the said recited surrender and their names were accordingly inserted therein as trustees for the said institution And reciting the death of the said Benjamin Hargreaves on the 4th day of July 1880 And reciting that new premises had been erected by public subscription upon a portion of the land comprised in the said recited surrender And reciting that the several parties thereto had consented to make and execute such declaration of trust as to the several hereditaments and premises comprised in the said recited surrender as was therein-after contained It was witnessed that in consideration of the premises they the several parties thereto did thereby acknowledge testify and declare that the said sum of £2,010 so expressed to have been by them paid to the said Henry Unsworth Hargreaves and James Parkinson as the consideration for the purchase of

the several hereditaments and premises mentioned and comprised in the said recited surrender was not the proper money of them the several parties thereto but such sum was money which had been publicly subscribed for the purchase and erection of premises suitable for the mechanics' institution in the town of Accrington as aforesaid And also that they and their respective heirs and assigns should and would stand fined and seized of the said several copyhold hereditaments and premises according to the nature and quality thereof and the custom of the said manor with their and every of their appurtenances Upon trust for the use and purposes of the Accrington Mechanics' Institution and to be held surrendered conveyed and assured from time to time as the general body of members thereof for the time being in special general meeting assembled should determine direct or appoint in the manner therein-after particularly mentioned and to for or upon no other use trust end intent or purposes whatsoever And it was thereby declared that every meeting for the purpose of taking into consideration the necessity or expediency of taking down removing enlarging or altering the buildings and premises or of selling or mortgaging the said several hereditaments and premises comprised in the said recited surrender or any part thereof should be convened by fourteen days' notice in writing specifying the time place and object of such meeting signed by the secretary or president for the time being of the institution and put up in the rooms of the institution and also advertised in the two local papers fourteen days previous to such meeting And a majority of not less than three fourths of the members present at such meeting qualified according to the rules of the institution to vote should be necessary to decide any resolution proposed at such meeting and in the said deed are contained other trusts and provisions relating to the appointment of new and additional trustees and the power to bring and defend actions and to enter into arbitrations with respect to the trust premises but the same do not affect the purport or terms of the agreement herein-after set forth :

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And whereas the Corporation have under the provisions of the Public Libraries Acts provided and carried on a public library since the year 1900 in portion of the premises belonging to the said mechanics' institution :

And whereas Andrew Carnegie esquire having offered to the Corporation the sum of £7,500 for the erection of a new public library subject to a suitable site being provided free of any charge upon the library rate levied within the borough the Corporation commenced negotiations with the directors of the said mechanics' institution with the view to secure the plot of land and premises herein-after particularly described being part of the hereditaments and premises comprised in the said recited surrender as and for the site for the said proposed public library :

And whereas as a result of such negotiations a meeting of the members of the said institution was duly convened and holden on the 21st day of October 1904 in compliance with the provisions of the said recited deed or declaration of trust at which meeting a resolution was passed and adopted in the terms following:—

Resolved That we being a majority of not less than three fourths of the members of the Accrington Mechanics' Institution present at a special

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general meeting duly convened by fourteen days' previous notice in writing signed by the secretary and sent to each member specifying the time place and object of such meeting a copy of such notice having been put up in the rooms of the institution and also advertised in the two local papers fourteen days previous to such meeting in consideration of the works conditions and obligations to be carried out executed undertaken and performed by the Corporation of Accrington as herein-after set out and defined hereby determine to sell convey and assure to the Corporation the plot of land portion whereof now forms the site of Willow House and other portion whereof is vacant and adjoins to Willow Street and contains 1,438 square yards or thereabouts which plot of land is part of the premises belonging to and is held in trust for such institution and was surrendered to the trustees thereof by surrender dated the 14th day of April 1877 and hereby request direct and empower the trustees of the institution to enter into sign and execute any agreements deeds surrenders and assurances necessary to give effect to this resolution :

The works conditions and obligations to be carried out executed undertaken and performed by the Corporation are as follows :—

- (1) The Corporation to cause to be erected upon the said plot of land a public library and reading rooms :
- (2) The Corporation to carry out the alterations to the buildings and premises retained by the mechanics' institution (rendered necessary by the transfer) in accordance with plans now submitted and signed by the chairman :
- (3) The Corporation to restore and decorate those parts of the buildings and premises so retained as aforesaid which will be disturbed by these alterations :
- (4) The Corporation to couple up the heating apparatus of the public library to that in the buildings and premises so retained as aforesaid and heat the same when required subject to the institution paying its proportionate share of the cost of fuel :
- (5) The Corporation to make all other alterations (consequent on the transfer) including the refixing of the electric installation thus disturbed :
- (6) The Corporation to redeem such part of the ground rent or rent-charge of £21 13s. 3d. as may be charged upon the land belonging to and retained by the mechanics' institution and to indemnify the trustees and members against any future claims in respect of same or any part thereof :
- (7) That if the Corporation decide to erect a building on the vacant land to the west of the mechanics' institution its distance from the present building and the "roof angle" shall be in accordance with the said plans :
- (8) That as a matter of courtesy the building plans of the new public library be submitted to the directors of the institution before the same are finally approved by the Corporation :

- (9) The Corporation to pay all costs and expenses to be incurred by the mechanics' institution of and incidental to carrying out the above-mentioned conveyance or assurance and other the terms and conditions above set out : A.D. 1905.

Also resolved "That subject to the foregoing resolution being in due course given effect to we hereby authorise the trustees and directors to give and hand over to the Corporation the whole of the library of books now the property of the institution except such books as the directors may decide to retain as and for a reference library such books so handed over to be added to and to become part of the municipal public library" :

And whereas the Corporation have accepted the terms and conditions mentioned and contained in the above-recited resolution as is testified by the corporate common seal being affixed to this agreement :

And whereas to remove all doubts as to the powers and right of the members and Trustees of the said mechanics' institution to surrender convey and assure the plot of land and premises herein-after particularly described to the Corporation as and for a site for the said proposed public library it has been arranged that this agreement should be entered into with the view to the same being embodied in and confirmed by Act of Parliament and the Corporation undertake to promote a Bill for such purpose in the next session of Parliament and use and make all reasonable endeavours to have same passed into law :

And whereas the costs and expenses to be incurred by the Corporation in about and incidental to carrying out the terms and conditions of this agreement have been provided by private donation and bequest and will form no charge upon the rates levied for public library purposes :

Now it is hereby agreed by and between the parties hereto as follows :—

1. The Trustees as duly authorised and empowered as aforesaid will in due course surrender convey and assure unto the Corporation their successors and assigns the plot of land and premises particularly described in the schedule hereto for an estate of inheritance according to the custom of the manor of Accrington Old Hold subject to the aforesaid covenants provisoes conditions and agreements so far as the same shall be subsisting and capable of taking effect and subject nevertheless to the Corporation their successors and assigns carrying out executing and undertaking the works and obligations named and set forth in the herein-before recited resolution.

2. The Corporation shall acquire by purchase or otherwise redeem the said ground rent or rentcharge of £21 13s. 3d. charged upon and made payable out of the hereditaments and premises comprised in the said recited surrender and shall indemnify the trustees and members of the said institution and the premises not hereby agreed to be surrendered conveyed and assured from and against the payment thereof or any part thereof and from and against all actions charges costs and damages in respect thereof.

3. The Bill to be promoted by the Corporation as herein-before mentioned with reference to (inter alia) the carrying of this agreement into effect may at the option of the Corporation contain such further or other powers rights privileges and authorities as the Corporation may require and as Parliament may sanction.

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4. The Trustees and members of the said mechanics' institution shall at the request and cost of the Corporation use their best endeavours to support such Bill and also in the event of this agreement not being confirmed by Parliament to secure the same to be carried into effect by some other proper and lawful means.

5. This agreement is subject to such alterations if any that Parliament may think fit to make therein and if any material alteration is so made either party shall be at liberty to withdraw from the agreement before the passing of the Bill.

6. All costs of all parties of and incidental to the negotiations for the preparation of and the carrying into execution of this agreement including the costs of all necessary plans and of the consequent application to Parliament shall be paid and borne by the Corporation.

In witness whereof the Trustees have hereunto set their hands and the Corporation have caused their common seal to be affixed the day and year first before written.

The SCHEDULE before referred to.

All that plot of land situate near the junction of St. James' Street and Willow Street both in Accrington aforesaid bounded on the easterly sides in part by St. James' Street aforesaid and in other part by other land and premises belonging to the mechanics' institution and measuring on those sides 56 feet and 7 inches and 61 feet and 6 inches respectively bounded on the northerly sides in part by Willow Street aforesaid and in other part by the said land and premises belonging to the said institution and measuring on those sides 65 feet and 4 inches and 90 feet respectively bounded on the southerly side by the land forming the site and grounds of Gothic House and measuring on that side 157 feet and 1 inch and bounded on the westerly side by the centre of a back road 4 yards wide between the said plot of land and the Baptist School and measuring on that side 118 feet and 5 inches and containing in the whole including the area of footpaths 6 feet wide co-extensive with the said plot of land in St. James' Street and Willow Street aforesaid respectively and one half of the said back road 1,438 superficial square yards or thereabouts together also with the building known as Willow House and all other erections now standing and being upon the said plot of land and which is shown upon the plan hereto annexed and therein surrounded with a red line.

Signed and sealed and delivered
by the said James Cunliffe
and William Haworth in the
presence of

JAMES CUNLIFFE.

L.S.

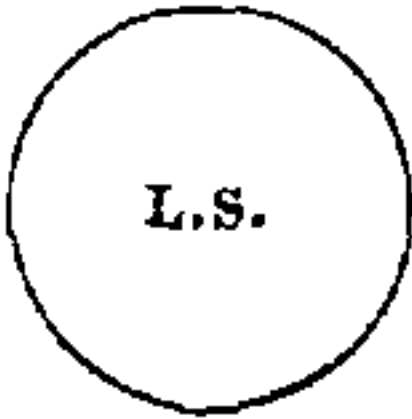
WILLIAM HAWORTH.

L.S.

S. SANDEMAN
Solicitor
Accrington.

Signed sealed and delivered by
the said John Rhodes in the
presence of

JOHN RHODES.

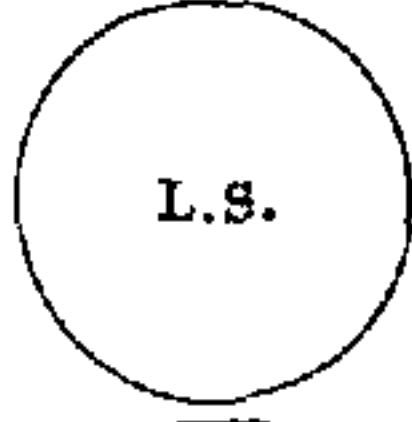
L.S.

A.D. 1905.

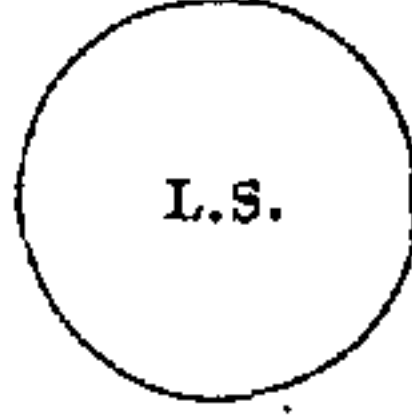
R. S. JOHNSON
Clerk to
Mr. S. SANDEMAN.

Signed sealed and delivered by
the said William Ratcliffe and
Frederick Noble Haywood in
the presence of

WILLIAM RATCLIFFE.

L.S.

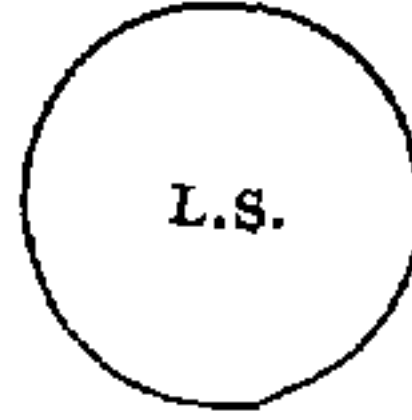
F. N. HAYWOOD.

L.S.

A. H. AITKEN
Town Clerk
Accrington.

Signed sealed and delivered by
the said Thomas Townley
Kenyon in the presence of

THOS. T. KENYON.

L.S.

HAROLD W. SHELDON
District Bank
Stockport
Bank Clerk.

The corporate common seal of the said mayor aldermen
and burgesses was hereunto affixed in pursuance of
a resolution of the council in the presence of

Corporate
Common
Seal.

J. DUCKWORTH
Mayor.

A. H. AITKEN
Town Clerk.

SECOND SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE
REQUIRED BY THE CORPORATION.

Township or Parish.	Numbers on deposited Plans
Church - - - - -	1 2.
Oswaldtwistle - - - - -	3 4 5 6 7 8 9 10 16 17 18 19 20.

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THIRD SCHEDULE.

FORM OF MORTGAGE.

BOROUGH of ACCRINGTON.

By virtue of the Accrington Corporation Act 1905 and of other their powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Accrington in the county of Lancaster (herein-after referred to as "the Corporation") in consideration of the sum of _____ pounds paid to the treasurer of the borough by _____ (herein-after called "the mortgagee") do hereby grant and assign unto the mortgagee [his] executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the said sum of _____ pounds doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee [his] executors administrators and assigns from the day of the date of these presents until the said sum of _____ pounds shall be fully paid to [him] [or them] with interest for the same [subject as herein-after provided] after the rate of _____ per centum per annum from the _____ day of _____ one thousand nine hundred and _____ until payment of the said principal sum such interest to be paid half yearly [to the bearer of the coupons or interest warrants hereunto annexed or to be hereafter annexed hereto on the days and at the place therein mentioned] [on the _____ day of _____ and the _____ day of _____ in each year] :

And it is hereby agreed that the said principal sum of _____ pounds shall be repaid at the town hall in the said borough [(subject as herein-after provided) on the _____ day of _____ one thousand nine hundred and _____] [by _____] :

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the mayor and town clerk of the said borough for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions hereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their common seal to be hereunto affixed this _____ day of _____ one thousand nine hundred and _____

Passed under the common seal of the Corporation in the presence of _____

This mortgage is duly registered in the register of mortgages kept by me pursuant to the provisions in that behalf.

Dated this _____ day of _____ one thousand nine hundred and _____

THE ENDORSEMENT WITHIN REFERRED TO.

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The within-named consenting the within-mentioned time for
repayment of the within-mentioned principal sum of is hereby
extended to the day of one thousand nine hundred
and [and the interest to be paid thereon on and from the
 day of one thousand nine hundred and
is hereby declared to be after the rate of per centum per
annum].

Dated this day of one thousand nine hundred
and .

Witness .

FORM OF TRANSFER OF MORTGAGE.

BOROUGH of ACCRINGTON.

I [the within-named] *A.B.* [of] in consideration of the sum
of pounds paid to me by of (herein-
after called "the transferee") do hereby transfer to the transferee [his]
executors administrators and assigns [the within written security] [the mort-
gage number of the revenues of the Corporation of the borough
of Accrington at the yearly rate of in the hundred bearing
date the day of] and all my right and interest
under the same subject to the several conditions on which I hold the same at
the time of the execution hereof and I the transferee for myself my executors
administrators and assigns do hereby agree to take the said mortgage security
subject to the same conditions.

Dated this day of one thousand nine hundred
and .

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FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.

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